

ANSWERS & EXPLANATIONS

GENERAL STUDIES (P) TEST –3793 (2023)

Q 1.B

- **Socialistic Principles:** These principles contemplate the ideology of socialism and lay down the framework of a democratic socialist state. The concept envisages providing social and economic justice, so that state should achieve the optimum norms of the welfare state. They direct the state through the following articles:
- Article 38: To promote the welfare of the people by securing and protecting as effectively as it may a social order in which justice, social, economic, and political shall inform all the institutions of the national life.
- Article 39: To Secure:(a) Right to an adequate means of livelihood for all citizens(b) **Equitable distribution of material resources of the community for the common good**(c) **Operation of an economic system to prevent the concentration of wealth and means of production**(d) Equal pay for equal work for both men and women(e) Opportunities for the healthy development of children.
- Article 39 A: To promote equal justice and to provide free legal aid to the poor.
- Article 41: To secure the right to work, right to education, and right to public assistance in cases of unemployment, old age, sickness and disablement.
- Article 42: To make provision for just and humane conditions for work and maternity relief.
- Article 43: To secure a living wage, a decent standard of living, and social and cultural opportunities for all workers. The State shall promote cottage industries on an individual or co-operative basis in rural areas.
- **Article 43 A: To take steps to secure the participation of workers in the management of industries.**
- Article 47: Raise the level of nutrition and the standard of living of people and improve public health.
- **Hence option (b) is the correct answer.**

Q 2.D

- Article 24 prohibits the employment of children below the age of 14 years in any factory, mine, or other hazardous activities like construction work or railway. But it does not prohibit their employment in any harmless or innocent work. The Child Labour (Prohibition and Regulation) Act, 1986, is the most important law in this direction.
- In addition,
 - the Employment of Children Act, 1938;
 - **the Factories Act, 1948;**
 - the Mines Act, 1952;
 - the Merchant Shipping Act, 1958;
 - the Plantation Labour Act, 1951;
 - the Motor Transport Workers Act, 1951;
 - Apprentices Act, 1961;
 - **the Beedi and Cigar Workers Act, 1966;** and other similar acts prohibit the employment of children below a certain age.
- The Bonded Labour System (Abolition) Act, 1976 prohibits *begar* (forced labour). **It does not deal with the issue of child labour. Hence option (d) is the correct answer.**

Q 3.C

- **Simple Majority**
 - This refers to a majority of more than 50% of the members present and voting in the House. Also known as Functional or Working majority. This is the most commonly used type of majority. When

the law does not specify the kind of majority needed, a simple majority is used for passing bills or motions.

- Ordinary bills require only a simple majority. For example, in the Lok Sabha, out of the total strength of 545, suppose 45 were absent and 100 abstained from voting. This means, that only 400 members were present and voting. In this case, the simple majority needed is 201 (50% + 1).
- Instances where a simple majority is needed:
 - To pass a money bill/financial/ordinary bills. **Hence option 1 is correct.**
 - To pass Adjournment Motion/Non-Confidence Motion/Censure Motion/Confidence Motion
 - To declare a financial emergency
 - To declare President's Rule (state emergency). **Hence option 2 is correct.**
 - To elect the Speaker and Deputy Speaker of the Lok Sabha
- **Special Majority:** Any majority other than simple, absolute, and effective are called Special Majorities. There are four types of special majorities. They are as follows:
- **Special Majority according to Article 249:** This refers to a majority of 2/3rd members present and voting. This is used to pass a Rajya Sabha resolution to empower the Parliament to make laws in the State List.
- **Special Majority according to Article 368**
 - This refers to a majority of 2/3rd members present and voting supported by over 50% of the total strength of the House. This is chiefly used for most of the Constitution Amendment Bills. Instances where this type of majority is used:
 - Passing a constitutional amendment bill that does not affect federalism.
 - Removing judges of the Supreme Court or High Court.
 - Removing the Comptroller and Auditor General of India (CAG) or the Chief Election Commissioner (CEC). **Hence option 3 is not correct.**
 - National emergency
 - Resolution by the State Legislature for the abolition or creation of the Legislative Council.
 - Special Majority according to Article 368 + 50 percent state ratification by a simple majority
 - This type of majority is needed when a constitutional amendment tries to change the federal structure. E.g. The bill that introduced the National Judicial Appointments Commission. It needed the support of at least 15 state legislatures out of the 29 states.
- **Special Majority according to Article 61**
 - This refers to a majority of 2/3rd of the total strength of the House. This is used in the case of impeachment of the President of India.

Q 4.D

- **Fundamental Duties are specified under Article 51A in Part IV-A of the Constitution by the 42nd Constitution (Amendment) Act, 1976 on the recommendations of the Swaran Singh Committee. Hence, statement 1 is not correct.**
- **Article 51(A) describes 11 fundamental duties — 10 came with the 42nd Amendment; the 11th was added by the 86th Amendment in 2002 when Atal Bihari Vajpayee was Prime Minister. Hence, statement 2 is not correct.**
- The eleven fundamental duties are: It shall be the duty of every citizen of India
 - to abide by the Constitution and respect its ideals and institutions, the National Flag and the National Anthem;
 - to cherish and follow the noble ideals which inspired our national struggle for freedom;
 - to uphold and protect the sovereignty, unity, and integrity of India;
 - to defend the country and render national service when called upon to do so;
 - to promote harmony and the spirit of common brotherhood amongst all the people of India transcending religious, linguistic, and regional or sectional diversities; to renounce practices derogatory to the dignity of women;
 - to value and preserve the rich heritage of our composite culture;
 - to protect and improve the natural environment including forests, lakes, rivers, and wildlife, and to have compassion for living creatures;
 - to develop the scientific temper, humanism, and the spirit of inquiry and reform;
 - to safeguard public property and to abjure violence;
 - to strive towards excellence in all spheres of individual and collective activity so that the nation constantly rises to higher levels of endeavor and achievement.]
 - who is a parent or guardian to provide opportunities for education to his child or, as the case may be, ward between the age of six and fourteen years.]

- The Concept of Fundamental Duties was adopted from the Soviet Constitution(USSR) which is now called Russia. Notably, none of the Constitutions of major democratic countries like the USA, Canada, France, Germany, Australia, and so on specifically contain a list of duties of citizens. **Japanese Constitution is, perhaps, the only democratic Constitution in the world that contains a list of duties of citizens.**

Q 5.D

- **In Minerva Mills v. Union of India(1980), the Supreme court said that the fundamental rights “are not an end in themselves but are the means to an end.” The end is specified in the directive principles.** It was further observed in the same case that the fundamental rights and directive principles together “constitute the core of the commitment to social revolution and they, together, are the conscience of the constitution.” The Indian constitution is founded on the bedrock of “balance” between the two. “To give absolute primacy to one over the other is to disturb the harmony of the constitution. This harmony and balance between fundamental rights and directive principles is an essential feature of the basic structure of the constitution.” **Hence option (d) is the correct answer.**
- **Champakam Dorairajan case (1951):** State of Madras v. Champakam Dorairajan is a landmark decision of the Supreme Court of India. This judgment led to the First Amendment of the Constitution of India. It was the first major judgment regarding reservations in the Republic of India.
- **Golaknath case (1967):** Golaknath v. State Of Punjab (1967 AIR 1643, 1967 SCR (2) 762), or simply the Golaknath case, was a 1967 Indian Supreme Court case, in which the Court ruled that Parliament could not curtail any of the Fundamental Rights in the Constitution.
- **Keshavananda Bharti Case (1973):** Kesavananda Bharati Sripadagalvaru & Ors. v. State of Kerala & Anr. (Writ Petition (Civil) 135 of 1970), also known as the Kesavananda Bharati judgment, is a landmark decision of the Supreme Court of India that outlined the basic structure doctrine of the Indian Constitution. The case is also known as the Fundamental Rights Case. The court in a **7-6 decision (13 judge bench)** asserted its right to strike down amendments to the constitution that was in violation of the fundamental architecture of the constitution.

Q 6.A

- Articles 124 to 147 in Part V of the Constitution deal with the organisation, independence, jurisdiction, powers, procedures and so on of the Supreme Court. The Parliament is also authorised to regulate them.
- **Seat of Supreme Court**
 - **Under Article 130 Constitution declares Delhi as the seat of the Supreme Court. Hence statement 1 is correct.**
 - But, it also authorizes the chief justice of India to appoint other place or places as seat of the Supreme Court. He can take decision in this regard only with the approval of the President. **Hence statement 2 is not correct.**
 - This provision is only optional and not compulsory. This means that no court can give any direction either to the President or to the Chief Justice to appoint any other place as a seat of the Supreme Court.

Q 7.D

- Article 14 says that no person shall be denied treatment of equality before the law or the equal protection of the laws within the territory of India. The right is extended to all persons whether citizens or foreigners, statutory corporations, companies, registered societies, or any other type of legal person. **Hence option (d) is the correct answer.**
- Article 14 forbids discrimination in matters of procedure also.
- Article 14 of the constitution prohibits class legislation and not reasonable classification for the purpose of the legislation.
- Thus while Article 14 forbids class legislation, it does not forbid classification which rests upon reasonable grounds of distinction. It refers to legislation that applies to certain persons or classes of persons, either natural or artificial, or to certain districts of territory or state. Class legislation violates equal protection guaranteed by the Constitution.

Q 8.C

- Recently, the Government of India has decided to reintroduce Cheetahs in National Parks over five years, under the '**Action Plan for Introduction of Cheetah in India**'. Action Plan aims to establish viable cheetah metapopulation in India that allows the cheetah to perform its functional role as a top predator and provides space for the expansion of the cheetah within its historical range thereby contributing to its

global conservation efforts. Cheetah is the only large carnivore that got completely wiped out from India in 1952, mainly due to over-hunting and habitat loss.

- Amongst the 10 surveyed sites of the central Indian states, **Kuno Palpur National Park (KNP) in Madhya Pradesh** has been rated the highest for **Cheetah reintroduction**. This is because of its suitable habitat and adequate prey base. **KNP is 748 sq. km. in area, devoid of human settlements**, forms part of the Sheopur-Shivpuri deciduous open forest landscape and is estimated to have a capacity to sustain 21 cheetahs. The park also offers the **prospect of housing four big cats of India - tiger, lion, leopard and cheetah** – and allowing them to coexist as in the past. **Hence, statements 2 and 3 are correct.**
- Kuno National Park predominantly consists of grasslands and sparse forests that are home to an abundance of mammals, reptiles, birds and butterflies. KNP is also home to the Asiatic Lion. **The National Park derives its name from the Kuno River**, which flows from south to north and divides KNP into two sections.
 - **The Girna river is a river in Maharashtra state of southern India.** It originates in the Western Ghats range of Nashik District, and flows east across Nashik and Jalgaon districts, swinging north in Jalgaon District to join the Tapi River. **Hence, statement 1 is not correct.**
- The other sites recommended for holding and conservation breeding of cheetah in India, in controlled wild conditions are:
 - **Nauradehi Wildlife Sanctuary (1,197 sq. km), Madhya Pradesh**
 - **Gandhi Sagar Wildlife Sanctuary - Bhainsrorgarh Wildlife Sanctuary complex (~2500 sq.km), Madhya Pradesh**
 - **Shahgarh bulge in Jaisalmer, Rajasthan (4,220 sq.km)**
 - **Mukundara Tiger Reserve as fenced enclosure (~80 sq.km), Rajasthan**

Q 9.C

- **An oligarchy** is a form of power structure in which power effectively rests with a small number of people. These people could be distinguished by royalty, wealth, family ties, education, corporate, or military control.
- **An aristocracy** is a form of government in which a few elite citizens rule; this is usually contrasted with democracy, in which all citizens are able to rule.
- **A technocracy** is a form of government in which experts in technology would be in control of all decision-making. Scientists, engineers, and technologists who have knowledge, expertise, or skills, would compose the governing body, instead of politicians, businessmen, and economists.
- **A theocracy** is a form of government in which official policy is governed by immediate divine guidance or by officials who are regarded as divinely guided or is pursuant to the doctrine of a particular religion or religious group. There can be many variants of theocracy. For example, in a theocracy, an ultimate leader can be a supreme deity (or group thereof), who rules either directly as a god in human form or indirectly through earthly servants (typically the clergy) who rule in the deity's stead. The laws are often based on religious laws and precepts, and the government serves its deity rather than the citizenry. They may be often oppressive in function, with strict rules and harsh punishments for rule-breakers. **Hence option (c) is the correct answer.**
- **Meritocracy:** Meritocracy, in an administrative sense, is a system of government or other administration wherein appointments and responsibilities are objectively assigned to individuals based upon their “merits” and achievements.
- **Autocracy** is a system of government in which a supreme political power is concentrated in the hands of one person; by contrast, a single-party state is a type of party system government in which no other parties are permitted to run candidates for election.
- **Totalitarianism** is an extreme version of authoritarianism – it is a political system where the state holds total authority over the society and seeks to control all aspects of public and private life wherever necessary.
- **Dictatorship** (government without people's consent) is a contrast to democracy (government whose power comes from people) and totalitarianism (government controls every aspect of people's life) opposes pluralism (government allows multiple lifestyles and opinions).
- **Monarchy** is a form of government in a state is ruled by an individual who typically inherits the throne by birth and rules for life or until abdication.

Q 10.D

- The constitution itself declares that laws made for admission or establishment of new states (under Article 2) and formation of new states and alteration of areas, boundaries, or names of existing states (under Article 3) are not to be considered as amendments of the constitution under article 368. **Hence statement 1 is not correct.**
- The 100th constitutional amendment Act (2015) was enacted to give effect to the acquiring of certain territories by India and transfer of certain other territories to Bangladesh in pursuance of the land boundary settlement agreement between Bangladesh and India. **Hence statement 2 is not correct.**
- **Boundary settlement and cession of territory:** In light of the various judgements of the Supreme Court, (**Berubari Union Case**) that a settlement of boundary dispute does not amount to the cession of territory. A boundary dispute only arises in cases where the territory is disputed and there are no absolute geographical demarcations to ascertain the country to which the disputed territory belongs. Further, a disputed land is also not recognised to belong to one specific country in terms of international law. Therefore, in the event that two countries settle a boundary dispute in relation to a disputed territory, it cannot amount to the cession of territory as the disputed territory did not absolutely and undisputedly belong to any of the countries in the first place.
- **99th Constitutional Amendment Act:** The 99th Constitutional Amendment Act established the National Judicial Commission Act (NJAC) in 2014 to replace the collegium system for appointing judges. The Supreme Court, on the other hand, backed the collegium system and ruled the NJAC unconstitutional, arguing that the political executive's involvement in judicial selections contradicted the Basic Structure Principles and the Judiciary's independence.
- The supreme of India in the Berubari Union case held that the power of the parliament to diminish the areas of a state (under article 3) does not cover the cession of Indian territory to a foreign country. Hence, Indian territory can be ceded to a foreign country only by amending the constitution under article 368. **Hence statement 3 is not correct.**

Q 11.A

- Lok Adalat is a forum where the cases (or disputes) which are pending in a court or which are at pre-litigation stage (not yet brought before a court) are compromised or settled in an amicable manner.
- Lok Adalat has been given statutory status under the Legal Services Authorities Act, 1987. **Hence statement 1 is correct.**
- According to the Supreme Court, the benefits under Lok Adalat are as follows:
 - There is no court fee and if court fee is already paid the amount will be refunded if the dispute is settled at Lok Adalat.
 - The basic features of Lok Adalat are the procedural flexibility and speedy trial of the disputes. There is no strict application of procedural laws like the Civil Procedure laws like the Civil Procedure Code and the Evidence Act while assessing the claim by Lok Adalat. **Hence statement 3 is correct.**
 - The Parties to the dispute can directly interact with the judge through their counsel which is not possible in regular courts of law.
 - The award by the Lok Adalat is binding on the parties and it has the status of a decree of a civil court and it is non appealable, which does not cause the delay in the settlement of disputes finally. **Hence statement 2 is not correct.**

Q 12.B

- Recently, Kassym-Zhomart Tokayev, the President of Kazakhstan, called on the Collective Security Treaty Organisation (CSTO) for help.
- **The Collective Security Treaty Organization** originates from the conclusion of the **Collective Security Treaty**, which was signed in Tashkent (Uzbekistan) on May 15, 1992. The treaty entered into force upon completion of the national ratification procedures on April 20, 1994.
 - The Organization today includes: the **Republic of Armenia, the Republic of Belarus, the Republic of Kazakhstan, the Kyrgyz Republic, the Russian Federation and the Republic of Tajikistan** (in the summer of 2006, the CSTO resumed its membership, and in 2012 the Republic of Uzbekistan suspended it).
 - **It is not a European Union organisation. Hence, statement 1 is not correct.**
- In accordance with **Article 3 of the Charter**, the objectives of the Organization are the strengthening of peace, international and regional security and stability, the protection on a collective basis of the independence, **territorial integrity and sovereignty of the member States**. The document defines the following principles by which the Organization is guided in its activities: priority of political means over

the military, strict respect for independence, voluntary participation, equality of rights and obligations of the member States, non-interference in affairs falling under the national jurisdiction of the member States.

- **Article 4** of the Treaty states: “**If one of the States Parties is subjected to aggression by any state or group of states, then this will be considered as aggression against all States Parties to this Treaty.** In the event of an act of aggression against any of the participating States, all other participating States will provide him with the necessary assistance, including military, and will also provide support at their disposal in exercising the right to collective defense in accordance with **Article 51 of the UN Charter.**” Hence, **statement 3 is correct.**
- **The Collective Security Council (CSC) is the highest body of the Organization and consists of heads of the member States.** It considers the fundamental issues of the Organization’s activities and makes decisions aimed at the realization of its goals and objectives, as well as provides coordination and joint activities of the member States for the realization of these goals. Sessions of the CSC are held alternately in the member States as necessary, but at least once a year. Hence, **statement 2 is correct.**
 - **The chairmanship of the Council is transferred in the order of the Russian alphabet, unless the Council decides otherwise.**

Q 13.B

- **The Citizenship (Amendment) Act, 2019 seeks to amend the Citizenship Act, of 1955.** The CAA provides citizenship on the basis of religion to six undocumented non-Muslim communities (Hindus, Sikhs, Buddhists, Jains, Parsis, and Christians) from Pakistan, Afghanistan, and Bangladesh who entered India on or before 31st December 2014. Hence, **statement 1 is not correct.**
- The Act does not apply to tribal areas of Tripura, Mizoram, Assam, and Meghalaya because of being included in the 6th Schedule of the Constitution. Also, areas that fall under the Inner Limit notified under the Bengal Eastern Frontier Regulation, 1873, will also be outside the Act’s purview. Hence, **statement 2 is correct**
- **It also says people holding Overseas Citizen of India (OCI) cards – an immigration status permitting a foreign citizen of Indian origin to live and work in India indefinitely – can lose their status if they violate local laws for major and minor offenses and violations.**

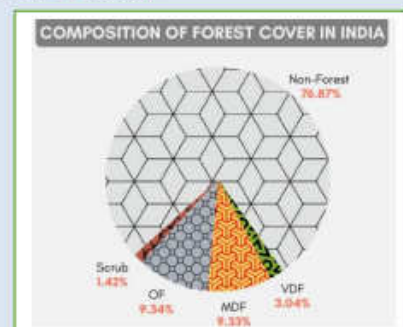
Q 14.C

- Recently, Telecommunication Engineering Centre(TEC), under the Department of Telecommunications, Ministry of Communications, has released a report “Code of Practice for Securing Consumer Internet of Things(IoT)” as a baseline requirement aligned with global standards and best practices.
- **Internet of Things (IoT)** is a seamlessly connected network of embedded objects/ devices, with identifiers, in which Machine to Machine (M2M) communication without any human intervention is possible using standard and interoperable communication protocols.
- Guidelines for securing consumer IoT
 - **All IoT device default passwords shall be unique per device** and/or require the user to choose a password that follows best practices, during device provisioning. Hence **option 1 is correct.**
 - Disclosed vulnerabilities should be acted on in a timely manner
 - **Software components in IoT devices should be securely updateable.** Updates shall be timely and should not adversely impact the functioning of the device.
 - **Devices and services should operate on the ‘principle of least privilege’.** Unused functionality should be disabled; hardware should not unnecessarily expose access (e.g. unrequired ports both network and logical should be closed). Unused functionality should be disabled; hardware should not unnecessarily expose access (e.g. unrequired ports both network and logical should be closed). Hence **option 2 is not correct.**
 - **The principle of least privilege (POLP)** is a concept in computer security that limits users’ access rights to only what are strictly required to do their jobs. Users are granted permission to read, write or execute only the files or resources necessary to do their jobs.
 - Security-sensitive data, including any remote management and control, should be encrypted in transit, appropriate to the properties of the technology and usage of the device. All keys should be managed securely.
 - In case the device collects or transmits personal data, such data should be securely stored.
 - Installation and **maintenance of IoT devices should employ minimal steps** and should follow security best practices on usability. Hence **option 3 is correct.**

Q 15.C

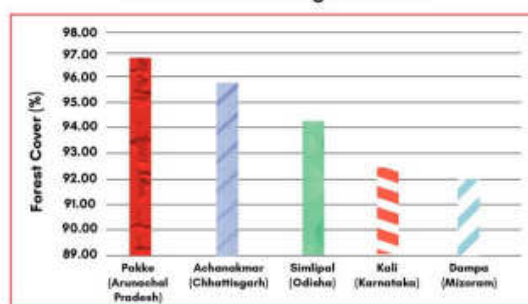
- The Ministry of Environment, Forests and Climate Change (MoEFCC) recently released the India State of Forest Report (ISFR) 2021.
- About India State of Forest Report (ISFR)
 - It is an assessment of India's forest and tree cover, published every two years by the Forest Survey of India under the Ministry of Environment, Forests and Climate Change.
- Key Findings

Forest cover	- Total forest cover: 7,13,789 sq km (21.71% of the geographical area of India) - Trends: <table border="1"> <tr> <td>Total forest cover</td><td>↑ Increase of 1,540 sq km (0.22%)</td></tr> <tr> <td>Very Dense Forest (VDF)</td><td>↑ Increase of 501 sq km</td></tr> <tr> <td>Moderately Dense Forest (MDF)</td><td>↓ Decrease of 1,582 sq km</td></tr> <tr> <td>Open Forest (OF)</td><td>↑ Increase of 2,621 sq km</td></tr> <tr> <td>Scrub</td><td>↑ Increase of 242 sq km</td></tr> </table> - Top 5 states in Total Forest cover: Madhya Pradesh, Arunachal Pradesh, Chhattisgarh, Odisha, Maharashtra - Top 5 states by percent of State's Geographic Area under Forest Cover: Mizoram (84.53%), Arunachal Pradesh (79.33%), Meghalaya, Manipur, Nagaland.	Total forest cover	↑ Increase of 1,540 sq km (0.22%)	Very Dense Forest (VDF)	↑ Increase of 501 sq km	Moderately Dense Forest (MDF)	↓ Decrease of 1,582 sq km	Open Forest (OF)	↑ Increase of 2,621 sq km	Scrub	↑ Increase of 242 sq km
Total forest cover	↑ Increase of 1,540 sq km (0.22%)										
Very Dense Forest (VDF)	↑ Increase of 501 sq km										
Moderately Dense Forest (MDF)	↓ Decrease of 1,582 sq km										
Open Forest (OF)	↑ Increase of 2,621 sq km										
Scrub	↑ Increase of 242 sq km										
Tree cover	- Total tree cover: 95,748 sq km (2.91% of the geographical area) - State with Maximum Tree cover: Maharashtra. - Trend: ↑ Increase of 721 sq km (0.76%)										
Trees Outside Forests (TOF)	- TOF: 29.29 million hectares (36.18% of the total forest and tree cover of India). - States having largest extent of TOF: Maharashtra followed by Odisha and Karnataka. - States/UTs having maximum percentage of TOF: Lakshadweep, followed by Kerala and Goa.										
Forest Cover w.r.t. Recorded Forest Area (RFA)	- Trends: - Forest cover inside the RFA/GW: ↑ increase of 31 sq km - Forest cover outside the RFA/GW: ↑ increase of 1,509 sq km										



or Green Wash (GW)	
Area Specific Forest Cover	- Forest cover in the hill districts - Total Forest Cover: 40.17% of the total geographical area of these districts. - Trend in forest cover: ↓ decrease of 902 sq km (0.32%) in 140 hill districts. - Tribal districts - Total forest cover: 37.53% of the geographical area of these districts. - Trend in forest cover: ↓ decrease of 655 sq km inside the RFA/GW in the tribal districts ↑ increase of 600 sq km outside the RFA/GW in the tribal districts. - North Eastern region - Total forest cover: 64.66% of its geographical area. - Trend in forest cover: ↓ decrease of 1,020 sq km (0.60%).
Forest Cover in Tiger reserves (TR) and Tiger corridor (TC)	- Forest cover in the TR: 55,666.27 sq km (7.80% of the country's total forest cover and 74.51% of the total area of TRs) - TR with Largest Forest Cover: Nagarjunasagar-Srisailem Tiger Reserve, Andhra Pradesh - Forest cover in the Tiger corridors: 11,575.12 sq km (1.62 % of the country's total forest cover) - Decadal Changes between 2011 and 2021 assessments: - Forest cover in TR: ↓ Decreased by 22.6 sq km (0.04%). - Forest cover in TC: ↑ Increased by 37.15 sq km (0.32%). - TR with Highest Gain in Forest cover: Buxa, West Bengal. - TR with Highest Losses in Forest cover: Kawal, Telangana.
Growing stock of wood	- Total growing stock of wood: 6,167.50 million cum comprising 4388.15 million cum inside forest areas and 1779.35 million cum outside recorded forest areas (TOF). - Average growing stock per hectare in forest: 56.60 cum.

Top Five Tiger Reserves in terms of forest cover as % of the area of the Tiger Reserve.



Mangrove cover	• Total Area: 4992 sq km (0.15% of country's geographical area) • Top states & UTs with Mangrove Cover: West Bengal, Gujarat, A&N Islands, Andhra Pradesh, Maharashtra, Odisha. • Trends: ○ Total Area: ↑ Increased by 17 sq km (0.34%) ○ States showing increase in mangrove cover: Odisha and Maharashtra
Bamboo resources	• Total bamboo bearing area: 15 sq km. Top Ten States in terms of bamboo bearing area (%) • Trends: ○ Total area: ↓ Decrease of 10,594 sq km. ○ State with highest ↑ increase in bamboo bearing area: Mizoram ○ State with highest ↓ decrease in bamboo bearing area: Madhya Pradesh. • Top state in terms of Bamboo Bearing Area (%): Madhya Pradesh.
Forest carbon stock	• Total carbon stock in forest: 7,204.0 million tonnes. • Soil Organic Carbon (SOC) represents the largest pool of carbon stock in forests. • Trend: ↑ Increase of 79.4 million tonnes in the carbon stock of the country. Forest Carbon Stock in Different pools %
Fire prone forest areas	• 22.27% of the forest cover of the country is highly to extremely fire prone. • Top 3 States according to number of forest fire detected by FSI: Odisha, Madhya Pradesh and Chhattisgarh.
Climate Hotspots	• As per the Climate Hotspot projections for the studied periods i.e. 2030, 2050 and 2085- States/UTs projected to witness highest temperature increase: Ladakh, Jammu & Kashmir, Himachal Pradesh and Uttarakhand . • States/UTs projected to witness the least temperature rise: Andaman & Nicobar Islands, West Bengal, Goa, Tamil Nadu and Andhra Pradesh. • Regions projected to experience the highest increase in rainfall: The North-Eastern States and Upper Malabar Coast of India. • Regions projected to experience least increase and sometimes even decline in rainfall: part of North-Eastern States like Arunachal Pradesh, Sikkim; North-Western parts of the country namely Ladakh, Jammu & Kashmir and Himachal Pradesh.

- Hence, option (c) is the correct answer.

Q 16.C

- The term "Minority" is not defined in the Indian Constitution. However, the Constitution recognizes religious and linguistic minorities. Hence, statement 1 is not correct.
- Article 28 prohibits completely state-run educational institutions from giving any religious instructions. However, the restriction is not applicable if the educational institution is established under any endowment or trust and is administered by the state. Hence, statement 2 is correct.
- Article 29 provides that every section of citizens residing in any part of the country has the right to protect and conserve its own distinct language, script or culture (it provides the right to a group/section/community of people).
- Article 29 grants protection to both religious, linguistic as well as cultural minorities. However, the rights are not necessarily restricted to minorities only, as it is commonly assumed to be. It includes minorities as well as the majority. Hence, statement 3 is not correct.

Q 17.A

- **Major earthquake** events in last 30,000 years resulted in spectacular changes in landscape of **the Katrol Hill Fault in the Kachchh region in Gujarat**, a study conducted on sediment samples revealed. These surprising geological facts about the seismic history of the fault in the recent geological past necessitate a revised seismic hazard assessment and mitigation strategies in Kachchh Basin, owing to its close proximity to industrial corridor and major settlements, including Bhuj city.
- Earthquakes are one of the natural hazards that geologists are still grappling with its complex nature. The complexity is attributed to its widespread occurrence through space and time.
- Seismicity in Kachchh region is highly complex as it is characterized by multiple seismic sources in the form of several East-West trending fault lines, which release continuously accumulating tectonic stresses at intervals producing earthquakes.
- Real-time monitoring of earthquakes since the occurrence of devastating **2001 Bhuj earthquake** indicate that **most of the faults in the region, viz., Kachchh Mainland Fault (KMF), South Wagad Fault (SWF), Gedi Fault (GF), and Island Belt Fault (IBF) are seismically active**. However, seismic activity along other faults like the Katrol Hill Fault (KHF) is not apparent, thus making the task of seismic hazard estimation and mitigation in the region a scientifically complex process.
- **Hence, option (a) is the correct answer.**

Q 18.C

- The 42nd Constitutional Amendment Act, 1976 is also famous as the Mini Constitution. This amendment brought a big change to the Constitution's preamble by adding the words **'SOCIALIST', 'SECULAR', and 'INTEGRITY'** in the preamble. This amendment also added a vital Part IVA in the Constitution as Fundamental duties. **Hence options 1 and 3 are correct.**
- **The term Democratic was part of the original constitution.** As stated in the Preamble, a democratic polity is founded on the doctrine of popular sovereignty or the people's possession of supreme power. The Indian Constitution establishes a representative parliamentary democracy in which the executive is accountable to the legislature for all policies and actions. The universal adult franchise, periodic elections, the rule of law, the independence of the judiciary, and the absence of discrimination on certain grounds are manifestations of the Indian polity's democratic character. In the Preamble, the term "democratic" is used broadly, encompassing not only political democracy but also social and economic democracy. **Hence option 2 is not correct.**
- The term Fraternity was part of the original constitution. This refers to a sense of brothers and sisterhood among its citizens, as well as a sense of belonging to the country. Fraternity, according to the Preamble, must ensure two things: human dignity and national unity and integrity. The 42nd Constitutional Amendment added the word 'integrity' to the Preamble (1976). **Hence option 4 is not correct.**

Q 19.A

- Citizenship signifies the relationship between individual and state. **It is listed in the Union List under the Constitution and thus is under the exclusive jurisdiction of Parliament. Hence, statement 1 is correct.**
- **The Constitution does not define the term 'citizen' but details of various categories of persons who are entitled to citizenship are given in Part 2 (Articles 5 to 11). Hence, statement 2 is correct.**
- **In India, the concept of single citizenship is adopted from the British constitution that is from the United Kingdom.** In India, only single citizenship is available to citizens. One cannot be a citizen of the state as well. This helps in increasing the feeling of nationality and encourages patriotism as it forges unity amidst regional and cultural differences. It also encourages fundamental rights such as the freedom of movement and residence in any part of the nation. **Hence, statement 3 is not correct.**

Q 20.D

Constituent Assembly of India – Historical Background

- In 1934, M N Roy proposed the idea of a constituent assembly.
- **The demand was taken up by the Congress Party in 1935 as an official demand. Hence statement 2 is not correct.**
- **The British accepted this in the August Offer of 1940. Hence statement 3 is not correct.**
- Elections were held for the formation of the constituent assembly under the Cabinet Mission plan of 1946.
- The members of this assembly were elected indirectly, i.e., by the members of the provincial assemblies using the method of a single transferable vote.
- **The Constituent Assembly established 13 committees to draft the constitution.** A seven-member committee prepared a draft of the constitution based on the reports of these committees. **Hence statement 1 is not correct.**

Q 21.B

- The Directive Principles of State Policy have enumerated in part IV of the Indian Constitution from Articles 36 to 51. The framers of the Constitution borrowed this idea from the Irish constitution of 1937, which had copied it from the Spanish constitution. Dr. B.R. Ambedkar described these principles as novel features' of the Indian Constitution.
- The phrase 'Directive Principles of State Policy' denotes the ideas that the State should keep in mind while formulating policies and enacting laws. These are the constitutional instructions or recommendations to the State in legislative, executive, and administrative matters. According to Article 36, the term 'State' in Part IV has the same meaning as in Part III dealing with Fundamental Rights. The DPSPs given in the questions are as follows:
 - **Article 39A - Equal justice and free legal aid.**
 - **Article 43 - Living wage etc. for workers.**
 - **Article 43(A) - Participation of workers in the management of industries.**
 - **Article 43(B) - Promotion of cooperative societies.**
 - **Article 44 - Uniform civil code for the citizens.**
 - **Article 47 - Duty of the state to raise the level of nutrition and the standard of living and to improve public health.**
- Hence only pair 3 is correctly matched.

Q 22.B

- Recently, the BSF while patrolling the area near **Lakhpattwari creek** — **located at the mouth of Sir Creek** arrested Pakistani fishermen entering the Indian territory.
- Sir Creek is a 96km estuary that lies between **Kutch** in Gujarat and Pakistan's Sindh province. It doesn't lie in the Gulf of Khambat. Originally named **Ban Ganga**, Sir Creek is named after a British representative. The Creek opens up in the **Arabian Sea** and roughly divides the Kutch region of Gujarat from the Sindh Province of Pakistan. **Hence, statement 1 is not correct.**
- **Kori**, Padala, Pabewari, Pir Sanai and **Vianbari** are located along the border area in India. **Hence, statement 2 is correct.**
- **The thalweg principle** (also known as the thalweg doctrine or the rule of thalweg) is the legal principle that if the **boundary between two political entities is stated to be a waterway**, without further description (e.g., a median line, right bank, eastern shore, low tide line, etc.), the boundary follows the thalweg of that watercourse. In particular, the boundary follows the center of the principal navigable channel of the waterway (which is presumably the deepest part). If there are multiple navigable channels in a river, the one principally used for downstream travel (likely having the strongest current) is used. **Hence, statement 3 is correct.**
- **Importance of Sir Creek:**
 - Apart from its strategic location, Sir Creek's core importance is fishing resources. Sir Creek is considered to be among the largest fishing grounds in Asia.
 - There is the possible presence of great oil and gas concentration under the sea.
- **Dispute between India and Pakistan**
 - The dispute lies in the interpretation of the maritime boundary line between Kutch and Sindh. Before India's independence, the provincial region was a part of the Bombay Presidency of British India. But after India's independence in 1947, Sindh became a part of Pakistan while Kutch remained a part of India.
 - Pakistan claims the entire creek as per paragraphs 9 and 10 of the Bombay Government Resolution of 1914 signed between then the Government of Sindh and Rao Maharaj of Kutch. The resolution, which demarcated the boundaries between the two territories, included the creek as part of Sindh, thus setting the boundary as the eastern flank of the creek popularly known as Green Line. But India claims that the boundary lies mid-channel as depicted in another map drawn in 1925, and implemented by the installation of mid-channel pillars back in 1924.

Q 23.C

- In the newly independent India, there was a demand from different regions, particularly South India, for the reorganization of states on linguistic basis. Accordingly, in **June 1948**, the Government of India appointed the **Linguistic Provinces Commission under the chairmanship of S K Dhar** to examine the feasibility of this.
 - The commission submitted its report in December 1948 and recommended the reorganization of states on the basis of administrative convenience rather than a linguistic factor.

- The above recommendations created much resentment and led to the appointment of another **Linguistic Provinces Committee** by the Congress in December 1948 itself to examine the whole question afresh.
 - It consisted of **Jawaharlal Nehru, Vallabhbhai Patel, and Pattabhi Sitaramayya** and hence, was popularly known as **JVP Committee**.
 - It submitted its report in April 1949 and formally rejected language as the basis for reorganization of states.
 - However, in October 1953, the Government of India was forced to create the first linguistic state, known as the Andhra state, by separating the Telugu-speaking areas from the Madras state. This followed a prolonged popular agitation and the death of Potti Sriramulu, a Congress person of standing, after a 56-day hunger strike for the cause.
- **Fazl Ali Commission:**
 - The creation of Andhra state intensified the demand from other regions for the creation of states on linguistic basis.
 - This forced the Government of India to appoint (in December 1953) a three-member **States Reorganisation Commission under the chairmanship of Fazl Ali** to re-examine the whole question.
 - Its other two members were K M Panikkar and H N Kunzru. It submitted its report in September 1955 and broadly accepted language as the basis of reorganisation of states. But, it rejected the theory of 'one language– one state'. Its view was that the unity of India should be regarded as the primary consideration in any redrawing of the country's political units. It identified four major factors that can be taken into account in any scheme of reorganisation of states:
 - Preservation and strengthening of the unity and security of the country.
 - Linguistic and cultural homogeneity.
 - Financial, economic and administrative considerations.
 - Planning and promotion of the welfare of the people in each state as well as of the nation as a whole.
 - The commission suggested the abolition of the four-fold classification of states under the original Constitution and creation of 16 states and 3 centrally administered territories.
 - **The Government of India accepted these recommendations with certain minor modifications. By the States Reorganisation Act (1956) and the 7th Constitutional Amendment Act (1956), the distinction between Part-A and Part-B states was done away with and Part-C states were abolished. Some of them were merged with adjacent states and some other were designated as union territories. As a result, 14 states and 6 union territories were created on November 1, 1956. Hence option (c) is the correct answer.**
- In 1966, the State of Punjab was bifurcated to create Haryana, the 17th state of the Indian Union, and the union territory of Chandigarh. This followed the demand for a separate 'Sikh Homeland' (Punjabi Subha) raised by the Akali Dal under the leadership of Master Tara Singh.
 - **On the recommendation of the Shah Commission (1966), the punjabi-speaking areas were constituted into the unilingual state of Punjab, the Hindi-speaking areas were constituted into the State of Haryana and the hill areas were merged with the adjoining union territory of Himachal Pradesh. In 1971, the union territory of Himachal Pradesh was elevated to the status of a state (18th state of the Indian Union).**

Q 24.A

- Kesavananda Bharati Sripadagalvaru & Ors. v. State of Kerala, also known as the Kesavananda Bharati judgment, is a landmark decision of the Supreme Court of India that outlined the basic structure doctrine of the Indian Constitution. The case is also known as the Fundamental Rights Case. The SC held that the **Preamble is a part of the constitution and can be amended but Parliament cannot amend the basic features of the preamble. Hence pair 1 is correctly matched.**
- In the I.C Golaknath case, the court declared that constitutional amendments were ordinary law and should stand the test of Article 13 and said that no amendment could curtail the citizens' fundamental rights. Hence, any such amendment was automatically declared void. **Hence pair 2 is not correctly matched.**
- In Shakari Prasad Judgment, the **Supreme Court held that the power to amend the Constitution under Article 368 does not include the power to amend fundamental rights** and that the word law in Article 13 (8) includes only an ordinary law made in the exercise of the legislative powers and does not include Constitutional amendment which is made in exercise of constituent power. Therefore, a Constitutional amendment will be valid even if it abridges or takes any of the fundamental rights. **Hence pair 3 is correctly matched.**

Q 25.D

- **Recently, Chile has** decided to take a giant step for its citizens and the world as whole, by writing a new constitution that will have climate and ecology play a central role. **Chile's new constitution is being written in view of a climate and environmental emergency.** The country will embark on a new kind of governance that will keep environmental concerns on the forefront. **Hence pair 1 is correctly matched.**
- **Recently, in Burkina Faso, the military deposed its president and suspended the constitution.** Soldiers in Burkina Faso announced on state television that they have seized power following a mutiny. African and Western nations denounced the takeover and the EU has called for the immediate release of President Roch Marc Christian Kaboré. The announcement cited the deterioration of the security situation and what the army described as Kaboré's inability to unite the West African nation and effectively respond to challenges, which include an Islamist insurgency. **Hence pair 2 is correctly matched.**
- **Recently, Indonesia has passed a bill to move its capital from Jakarta to East Kalimantan, situated in the east of Borneo island about 2,000 kilometers away. The new capital city of the country will be called Nusantara which translates to "archipelago". Hence pair 3 is correctly matched.**
 - Jakarta has been Indonesia's capital since the country became independent in 1949. The reason behind Indonesia's decision is that Jakarta is sinking. The northern part of Jakarta that meets the Java sea has been sinking 25 centimetres a year and it is affecting the 10 million people living in the city.
 - Jakarta does not have access to clean overground water. Instead, it depends on drilled borewells to extract groundwater for its population. But as the city became overcrowded, the number of pumps increased. As more water was sucked out of the ground, the land above began to drop. **This, in addition to rise in sea-level because of climate change, accelerated the rate at which the city is shrinking.**
- Recently, the UNCC's Governing Council convened a special session to mark the conclusion of the reparations process, ending the process for the individuals, companies and governments, able to prove they had suffered damages from Iraq's unlawful invasion and occupation of Kuwait, under former dictator Saddam Hussein. More than 30 years after the UN Compensation Commission (UNCC) was created to ensure **restitution for Kuwait following the Iraqi invasion of 1990**, the reparations body announced recently that it had processed Kuwait's final claim, amounting to \$52.4 billion in total. **Hence pair 4 is correctly matched.**

Q 26.C

- **The Government of India Act 1915 was an act of the Parliament of Britain, which consolidated prior Acts of Parliament concerning British India into a single act. It was passed in July 1915 and went into effect on 1 January 1916. Hence the option (c) is the correct answer.**
- The act repealed 47 prior acts of Parliament, starting with an act of 1770, and replaced them with a single act containing 135 sections and five schedules. It was introduced first to the House of Lords, where it was referred to a joint committee of Parliament chaired by Lord Loreburn. The committee removed several provisions which went beyond the simple consolidation of existing law.
- The Government of India Act 1915 and its supplemental act the following year made the English statute law relating to India easier to understand, and therefore easier to amend.
- The Government of India Act of 1915 brought about one firm reform and this was with regards to the jurisdiction of the High Courts. It was held in this act that no High Court could exert original jurisdiction over matters concerning---Revenue, or any act done concerning or relation to it.

Q 27.A

- Important committees of the constituent assembly and their chairmen

Name of the Committee	Chairman
Committee on the Rules of Procedure	Rajendra Prasad
Steering Committee	Rajendra Prasad
Finance and Staff Committee	Rajendra Prasad
Credential Committee	Alladi Krishnaswami Ayyar
House Committee	B. Pattabhi Sitaramayya
Order of Business Committee	K.M. Muni
Ad hoc Committee on the National Flag	Rajendra Prasad
Committee on the Functions of the Constituent Assembly	G.V. Mavalankar
States Committee	Jawaharlal Nehru
Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas	Vallabhbhai Patel
Minorities Sub-Committee	H.C. Mookherjee
Fundamental Rights Sub-Committee	J.B. Kripalani
North-East Frontier Tribal Areas and Assam Excluded & Partially Excluded Areas Sub-Committee	Gopinath Bardoloi
Excluded and Partially Excluded Areas (Other than those in Assam) Sub-Committee	A.V. Thakkar
Union Powers Committee	Jawaharlal Nehru
Union Constitution Committee	Jawaharlal Nehru
Drafting Committee	B.R. Ambedkar

- Hence pairs 1 and 2 are not correctly matched, and pair 3 is correctly matched.

Q 28.C

- The Directive Principles are non-justiciable in nature, that is, they are not legally enforceable by the courts for their violation. Therefore, the government (Central, state and local) cannot be compelled to implement them. Nevertheless, the Constitution (Article 37) itself says that these principles are fundamental in the governance of the country and it shall be the duty of the State to apply these principles in making laws.
- DPSPs are positive obligations to the state. DPSPs were not made justifiable because India did not have sufficient financial resources. Moreover, its backwardness and diversity were also a hindrance to implementing these principles at that time. At the time of the drafting of the Constitution, India was a newly born independent state and was struggling with other issues, and making DPSPs justiciable would have put India in great difficulty. **Hence option (c) is the correct answer.**

Q 29.B

- Recently, the Indian Institute of Science (IISc) Bengaluru has installed Param Pravega, one of the most powerful Indian supercomputers.
- The National Supercomputing Mission** was launched to enhance the research capacities and capabilities in the country by connecting them to form a Supercomputing grid, with **National Knowledge Network (NKN) as the backbone.**
- The NSM is setting up a grid of supercomputing facilities in academic and research institutions across the country. **Part of this is being imported from abroad, and partly built indigenously,** the latter being increased with time.
- The Mission is being jointly steered by the Department of Science and Technology (DST) and the Ministry of Electronics and Information Technology (MeitY) and implemented by the **Centre for Development of Advanced Computing (C-DAC), Pune, and the Indian Institute of Science (IISc), Bengaluru.** Hence, statement 1 is not correct.
- Param Pravega** having a supercomputing power of 3.3 petaflops, is the largest supercomputer that has been installed in an Indian academic institution. **Hence, statement 2 is correct.**

Q 30.D

- The 86th amendment to the constitution of India in 2002, provided the Right to Education as a fundamental right in part-III of the Constitution. Hence, statement 1 is not correct.
- Right to Education Act (RTE) provided free and compulsory education to children in 2009 and enforced it as a fundamental right under Article 21-A. The Right to Education serves as a building block to ensure that every child has his or her right to get a quality elementary education.
- Article 21A of the Constitution provides for “free and compulsory education to all children of the age of six to fourteen years”. It does not “guarantee” the right to receive education in the “mother tongue or home language”, while it contemplates the right to free and elementary education, the Rajasthan High Court has held. Hence, statement 2 is not correct.
- The first official document on the Right to Education was Ramamurti Committee Report in 1990.

Q 31.A

- Article 15 prohibits discrimination by the state against any citizen on grounds 'only' of caste, religion, sex, race, and place of birth. **Reservation on the basis of domicile is not one of the grounds of article 15. Article 15 defines “place of birth” as a ground of discrimination but reservation based on domicile generally comes under “place of residence” which is outside the bounds of “place of birth”. The place of birth and place of residence can be different for a single individual. Hence, statement 1 is not correct.**
- Article 15 (3) says that in some areas the women and children do need special privileges and therefore the state for their welfare can make laws, moreover this does not mean that discrimination is being done but some special privileges are being given to them as they require them. **Hence, statement 2 is correct.**
- Under Article 15(5), the state is empowered to make provisions relating to the admission to educational institutions including private educational institutions, whether aided or unaided by the State, other than the minority educational institutions. **Hence, statement 3 is not correct.**

Q 32.B

- **Recently, Chief Justice of India recommended amending the Official Languages Act of 1963 to include more vernacular languages in governance, and not just confine it to Hindi and English.**
- The Eighth Schedule to the Constitution consists of the following 22 languages:
- Assamese, Bengali, Gujarati, Hindi, Kannada, Kashmiri, Konkani, Malayalam, Manipuri, Marathi, Nepali, Oriya, Punjabi, Sanskrit, Sindhi, Tamil, Telugu, Urdu, Bodo, Santhali, Maithili and Dogri.
- Of these languages, 14 were initially included in the Constitution. Sindhi language was added in 1967. Thereafter three more languages viz., Konkani, Manipuri and Nepali were included in 1992. Subsequently Bodo, Dogri, Maithili and Santhali were added in 2004.
- **English and Tulu are both not included in the Eight Schedule of the Constitution of India. Hence option (b) is the correct answer.**

Q 33.D

- The organizational structure, jurisdiction and nomenclature of the subordinate judiciary are laid down by the states. Hence, they differ slightly from state to state. **Hence, statement 1 is not correct.**
- The District Judge is the highest judicial authority in the district. He possesses original and appellate jurisdiction in both civil and criminal matters. When he hears criminal cases, he is called as the session judge. As a session judge he can impose any sentence including life imprisonment and capital punishment. However, a capital punishment passed by him is subject to confirmation by High Court, whether there is appeal or not. **Hence, statement 2 is not correct.**

Q 34.A

- The Government of India Act 1858 was an Act of the Parliament of the United Kingdom. Its provisions called for the liquidation of the British East India Company and the transference of its functions to the British Crown. It was also known as the ‘Act for the Good Government of India’.
- It ended the Dual government scheme initiated due to Pitt’s India act. **The Court of Directors and the Board of Control of the British East India company were scrapped.**
- **The powers of the Company’s Court of Directors were transferred to the Secretary of State for India. He was going to be a member of the British parliament. He was provided with an advisory body consisting of 15 members.**
- Secretary of state-in-council was set up as a body corporate, capable of suing and being sued in India and England. A viceroy would be appointed who would serve as the representative of the British crown. Lord

Canning was the first such viceroy. **India became a direct British colony through the passage of this act.**

- **Hence option (a) is the correct answer.**

Q 35.C

- Unlike the Indian Constitution, the American Constitution provides for the presidential form of government. The features of the American presidential system of government are as follows:
- The American President is both the head of the State and the head of government. As the head of State, he occupies a ceremonial position. As the head of government, he leads the executive organ of government.
- The President is elected by an electoral college for a fixed tenure of four years. He cannot be removed by the Congress except by impeachment for a grave unconstitutional act.
- **The President governs with the help of a cabinet or a smaller body called 'Kitchen Cabinet'.** It is only an advisory body and consists of non-elected departmental secretaries. They are selected and appointed by him, are responsible only to him, and can be removed by him any time.
- The President and his secretaries are not responsible to the Congress for their acts. They neither possess membership in the Congress nor attend its sessions.
- **The President cannot dissolve the House of Representatives—the lower house of the Congress.**
- The doctrine of separation of powers is the basis of the American presidential system. The legislative, executive and judicial powers of the government are separated and vested in the three independent organs of the government.
- **Merits of presidential form of government:**
 - **Stable government. Hence option 1 is correct.**
 - Definiteness in policies.
 - Based on separation of powers.
 - Government by experts
 - Demerits of presidential form of government:
 - Conflict between legislature and executive.
 - Non-responsible government.
 - **May lead to autocracy. Hence option 2 is not correct.**
 - **Narrow representation. Hence option 3 is not correct.**

Q 36.A

- The main object of article 16 is to create a constitutional right to equality of opportunity and employment in public offices. This article is confined to citizens as distinguished from other persons. Further, it is confined to employment or appointment to an office 'under the state'. **Hence, statement 1 is correct.**
- Article 16 (4A) provides that State can make any provision for reservation in matters of promotion in favor of the Scheduled Castes and the Scheduled Tribes if they are not adequately represented in the services under the State. **Hence, statement 2 is not correct.**
- Article 16 (4) provides that the State can make any provision for the reservation of appointments or posts in favor of any backward class of citizens who, in the opinion of the state, are not adequately represented in the services under the State. **Under this Article, it is not necessary for the central government or the state government to consult the Public Service Commissions with regard to the reservation of posts for any or all of the backward classes.**

Q 37.D

- Dr. Sachchidanand was the oldest member of the constituent assembly, temporarily elected as president. Latter Dr. Rajendra Prasad was elected as president of the constituent assembly. V.T Krishnamachari and H.C Mukherji were elected as vice presidents of the constituent assembly. **Hence statement 2 is not correct.** Initially, the Muslim league was part of the constituent assembly of undivided India, latter it withdrew from it.
- Section 8 of the Indian Independence Act of 1947 established the Assembly. The Constituent Assembly of India was established in accordance with the provisions of the Cabinet Mission Plan of May 1946.
- The Assembly was made up of 389 members who represented provinces (292), states (93), Chief Commissioner Provinces (3), as well as Balochistan (1)
- **On December 9, 1946, the Assembly convened for the first time and elected Dr. Sachhidannand Sinha, the Assembly's oldest member, as Provisional President.** Dr. Rajendra Prasad was elected as the Assembly's permanent Chairman on December 11, 1946. The Assembly was to be composed of proportional representation from existing provincial legislatures and princely states. **Hence statement 1 is correct.**

- The Assembly was to be divided into three sections: Punjab & the North-West, Bengal-Assam, and the rest of India. The constitutions were to be drafted for the Indian Union, each Section, and each of the Provinces within them. **The Muslim League, which had won the majority of the 80 Muslim seats and dominated two smaller Sections, chose not to participate, and as a result, the Assembly never convened separately in sections. Hence statement 3 is not correct.**
- Following the passage of the Indian Independence Act by the British Parliament, it was decided that members who wanted to keep their seats in the provincial legislature would vacate their seats in the Assembly. However, several members of the provincial legislature continued to attend and participate in the Assembly until a provision was made in the Constitution itself prohibiting this. The declaration of Partition of India caused the greatest change in membership.
- Following an initial lack of interest, the princely states began negotiating their representation with a committee of the Assembly. Hundreds of princely states were grouped into larger associations over time, and provisions were made for them to elect their representatives to the Assembly.
- New members continued to join up until the Assembly's final day. Until the very end, Hyderabad did not send a representative. According to records, the Assembly's maximum membership near the end of its tenure was 307.
- Several non-members assisted the Assembly in developing the Constitution. Outside the Assembly, prominent public figures were asked to serve on committees formed by the Assembly to focus on specific features or segments.
- These committees were responsible for much of the constitution's development, both procedurally and substantively. Resolutions were moved and adopted after discussions to establish committees as needed.
- The Constituent Assembly established 13 committees to draft the constitution. A seven-member committee prepared a draft of the constitution based on the reports of these committees.
- The draft constitution was published in January 1948, and the public had eight months to discuss it and propose amendments. Following the receipt of comments in response to the Draft Constitution of February 1948, the so-called Special Committee was formed to determine the next course of action.
- After the draft was discussed by the people, the press, the provincial assemblies, and the constituent Assembly in light of the suggestions received, it was finally adopted and signed by the President of the Assembly on November 26, 1949.
- Following the authentication of the Constitution's copies, the Constituent Assembly was naturally dissolved, with its Chairperson elected President of India and its staff diverted to other avenues.
- However, the majority of the Assembly continued to function as the provisional Parliament of India until the first general elections were held. This provisional Parliament did, in fact, make the first amendment to the Indian Constitution in the summer of 1951.

Q 38.C

- The term 'Fraternity' was added by Dr B R Ambedkar to the Objectives resolution which was subsequently adopted as the Preamble.
- According to B. R. Ambedkar, an ideal society should be mobile, should be full of channels for conveying a change taking place in one part to other parts. In an ideal society there should be many interests consciously communicated and shared. There should be varied and free points of contact with other modes of association. In other words, there must be social endosmosis. This is a fraternity. **In a nutshell, it is essentially an attitude of mutual respect and reverence towards one's fellow men. Hence option (c) is the correct answer.**
- In addition, it is because of this principle of fraternity that man does not consider his fellow beings in society as his rivals for seeking means of happiness to whom he must defeat to become successful. During debates in the constituent assembly explaining the concept of fraternity, Dr Ambedkar said that fraternity means a sense of common brotherhood of Indians being one people. It is a principle which gives solidarity to social life.
- Mutual respect and reverence is a higher goal than mutual tolerance and concern. Mutual tolerance is a willingness to accept behaviour and beliefs that are different from your own, although you might not agree with or approve of them. On the other hand, mutual respect implies admiration felt or shown for someone or something that you believe has good ideas or qualities.
- The voluntary sharing of collective burdens by individuals for the welfare of society is a collective duty. It may not necessarily be owing to an attitude of mutual respect and reverence towards one's fellow men. Fraternity is more concerned about individuals. It is about relations between individual to individual and respect for the dignity of the individual eventually leading to unity and integrity of the nation. **Hence, option (b) is not the correct answer.**

- The formation of collective consciousness leading to unity and integrity of the nation is more of a collective entity. In addition, this may be forced as well. It doesn't ensure that it has been achieved through the process of development of mutual respect and reverence, which is the most important component of fraternity. **Hence, option (a) is not the correct answer.**

Q 39.C

- Justice stands for rule of law, absence of arbitrariness and a system of equal rights, freedom and opportunities for all in a society. India seeks social, economic and political justice to ensure equality to its citizens.
- The term 'justice' in the Preamble embraces three distinct forms—social, economic and political, secured through various provisions of Fundamental Rights and Directive Principles.
- **Social justice:** It means greater good for a larger number of people and unequally should be treated equally. The apex court in the Kesavananda Bharati case held that social justice is part of the Basic Structure of the Indian constitution. Social justice means that equal social opportunities are available to every person for the personal development of every person without any discrimination based on race, sex or caste etc.
- No person should be deprived of social conditions necessary for development due to these differences. The concept of social justice is based on the practice of social equality. Social justice can only be enforced in a society where the exploitation of man by a man is not present. In the Case of S.R Bommai v. Union of India, the apex court held that social justice and judicial review are two basic features of the Indian constitution.
- **Economic Justice:** Economic justice is somehow part of social justice itself; the Indian constitution visualizes socio-economic justice as incorporated under the Directive principles of state policy. Economic justice means providing economic opportunity, economic equality and removing economic disabilities. It is always implemented under the umbrella of Social Justice. Economic justice means there should be economic equality among everyone in society. There should not exist any inequality among individuals based on their economic status. No one should be deprived of any opportunity due to his/her economic status. The economic status of any person should not be responsible for the lack of opportunities provided to him. Economic justice means the eradication of poverty by adding to national wealth and resources and distributing this wealth equally among everyone who contributes to its production.
- **Political Justice:** Political Justice means a system free from political arbitrariness. There should be political fairness in the working of the government. The political status of any person should not give any advantage and he/she should be treated like every other citizen. Every law should be equally applicable to every person irrespective of his political status.
- **Relationship between Social, Economic and Political Justice:** All three types of justice are closely related to each other. One can't be obtained unless and until the other two are present. Social justice can be obtained only when economic and political justice is present. Indian Constitution under part III enforces all three types of justice by making provisions relating to equality under articles 14 and 15. Also in 2019, the 103rd constitutional amendment was done to ensure economic justice for everyone (10% Reservation for economically weaker sections). The objective behind this amendment was the implementation of economic justice.

Q 40.B

Original Jurisdiction

- **It means the power of a high court to hear disputes in the first instance, not by way of appeal. It extends to the following:**
 - Matters of admiralty and contempt of court. **Hence option 3 is correct.**
 - Disputes relating to the election of members of Parliament and state legislatures. **Hence option 1 is correct.**
 - Regarding revenue matter or an act ordered or done in revenue collection. **Hence option 2 is correct.**
 - Enforcement of fundamental rights of citizens.
 - Cases ordered to be transferred from a subordinate court involving the interpretation of the Constitution to its own file.
 - The four high courts (i.e., Calcutta, Bombay, Madras and Delhi High Courts) have original civil jurisdiction in cases of higher value. Before 1973, the Calcutta, Bombay and Madras High Courts also had original criminal jurisdiction. This was fully abolished by the Criminal Procedure Code, 1973.
- As a federal court, the Supreme Court decides the disputes between different units of the Indian Federation.

- **More elaborately, any dispute:** (a) Between the Centre and one or more states; or (b) Between the Centre and any state or states on one side and one or more other states on the other side; or (c) Between two or more states. In these federal disputes, the Supreme Court has exclusive original jurisdiction.
- Exclusive means, no other court can decide such disputes and original means, the power to hear such disputes in the first instance, not by way of appeal. **Hence option 4 is not correct.**

Q 41.A

- 25th constitutional amendment act 1971,- curtailed the fundamental right to property. Provided that any law made to give effect to Directive Principles contained in Article 39(b) or (c) cannot be challenged on the ground of violation of the fundamental rights guaranteed by Articles 14, 19, and 31. **Hence pair 1 is not correctly matched.**
- 26th Constitutional Amendment act 1971- Abolished the privy purses and privileges of the former rulers of princely states. The privy purse was a specific amount of money that was to be paid annually by the Indian government to the rulers of princely states and their successors who had acceded to India. The privy purses continued to be paid to the royal families until the 26th Amendment in 1971, by which all their privileges and allowances from the central government ceased to exist **Hence pair 2 is not correctly matched.**
- 91st Constitutional Amendment Act – Made provisions to limit the size of the council of ministers, to debar defections from holding public offices, and strengthen the anti-defection law. The Constitution (91st Amendment) Act, 2003 inserted clause 1A in Article 164, which says “the total number of Ministers, including the Chief Minister, in the Council of Ministers in a State shall not exceed 15% of the total number of members of the Legislative Assembly of that State. **Hence pair 3 is correctly matched.**

Q 42.D

- A constitution is defined as a set of written rules, that are accepted by all the people living together in a country. It determines the relationship between the people and the government.
- The first function of a constitution is to provide a set of basic rules that allow minimal coordination amongst the members of society. **Hence statement 1 is correct.**
- It limits the power of the government (Fundamental Rights). **Hence statement 2 is correct.**
- It expresses the aspirations of the people to create a good society. It expresses the fundamental identity of the people (We the people of India, Preamble of the Constitution of India). **Hence statement 3 is correct.**
- **The different functions of the constitution are:**
 - The constitution should provide a set of basic rules that allows the people to live together with trust and coordination (E.g. Citizenship, Fundamental Rights, Rule of Law).
 - It specifies how the government will be constituted, and who will have the power to make the decision for a particular scenario, and so on. (E.g Centre-State relations, Different offices, Judiciary, Executive, Legislature).
 - It expresses the aspirations of the people to create a good society. (E.g. The Preamble of the Indian Constitution).

Q 43.B

- The inclusion of the term 'socialist' in the preamble of the Indian constitution was widely debated in the Indian constituent assembly.
- Dr. B. R. Ambedkar (chairman of the drafting committee) argued that **it is against the very grain of democracy to decide in the Constitution what kind of society the people of India should live in.**
- He further added that it is perfectly possible today, for the majority people to hold that the socialist organisation of society is better than the capitalist organisation of society. But it would be perfectly possible for thinking people to devise some other form of social organisation which might be better than the socialist organisation of today or of tomorrow.
- Therefore, it was incorrect for the Constitution to tie down the people to live in a particular form and not leave it to the people themselves to decide it for themselves. Eventually, the final text of the preamble omitted the word 'socialist'.
- **Hence option (b) is the correct answer.**

Q 44.C

- Negative and positive rights are a distinct category of rights that oblige either action or inaction. These obligations may be of either a legal or moral character.
- Positive Right:
 - Positive rights require others to provide you with either a good or service.

- It is an obligation on others to provide some benefit to the rights holder.
- It is a right to be subjected to an action or another person or group; positive rights permit or oblige action.
- Right to Education is a positive right which obliges state to provide adequate facilities for education.
- **Negative rights**
 - A negative right, on the other hand, only **requires others to abstain from interfering with your actions.**
 - These are those rights that entitle a person to be let alone in one manner or another.
 - If a person has a negative right, that person has the right to be free to do some action or to do no action.
 - Negative rights can include, but certainly are not limited to, freedoms such as the right to choose what to do for a living, whether to buy one brand of cereal or another, the right to buy and sell property, the right not to be killed, the right to speak freely, and the right to make one's own moral decisions.
- **Hence option (c) is the correct answer.**

Q 45.D

- Recently, the Centre has initiated the process for comprehensive amendment of criminal laws in consultation with all stakeholders.
- **About Criminal Laws in India:**
 - **Criminal law and criminal procedure fall under the Concurrent List while matters relating to Police and Prisons fall under the State List.** The laws that govern criminal law in India are the Indian Penal Code 1860; the Indian Evidence Act, 1872; and the Criminal Procedure Code, 1973 (CrPC). **Hence statement 1 is correct.**
 - The Indian Penal Code (IPC) has its roots in the times of the British rule in India, formulated in year 1860. Amendments have been made to it in order to incorporate a lot of changes and jurisdiction clauses.
 - **It is the main document that lists all the cases and punishments that a person committing any crimes is liable to be charged.** IPC extends to whole of India Punishments under IPC can be extended both to offences committed within India as well as offences committed beyond, but which by law may be tried within India. **Hence statement 2 is correct.**
 - The Code of Criminal Procedure is also called the criminal procedure code (CrPC). This code was enacted in 1973 and came into force on April 1, 1974.
 - The criminal procedure code provides a mechanism for conducting trials in a criminal case. It gives the procedure for registering a complaint, conducting a trial and passing an order, and filing an appeal against any order. **It classifies criminal offences into several categories such as bailable, non-bailable, cognizable and non-cognizable offences.** Various steps such as filing a First Information Report (FIR), gathering evidence and initiating an inquiry are all governed by the CrPC. **Hence statement 3 is correct.**
- **Hence, all three statements are correct.**
- **Additional Information**
- **Bail** is an instrument which is used to ensure the presence of an accused whenever required by the court. CrPC does not define the term Bail, but essentially, Bail is an agreement in which a person makes a written undertaking to the court to appear before it whenever required and comply with any conditions set out in the agreement.
- **Bailable offences** are those offences or crimes that are not very serious in nature. In such cases, bail is a right and the arrested person must be released after depositing the bail with the police. The police have the power to grant bail in these types of cases. The accused may be released on bail, on executing a "bail bond", with or without furnishing sureties.
- **Non-bailable offences** are serious offences where bail is a privilege and only the courts can grant it. On being arrested and taken into custody for a serious or non-bailable crime, a person cannot ask to be released on bail as a matter of right.
- A **cognizable offence** is an offence in which the police officer can arrest the convict without a warrant and can start an investigation without the permission of the court. Cognizable offences are generally heinous or serious in nature such as murder, rape, kidnapping, theft, dowry death etc. The first information report (FIR) is registered only in cognizable crimes.
 - Under section 154 Criminal Procedure Code (CrPC), a police officer is bound to register an FIR in case of a cognizable crime. He can also conduct some kind of preliminary inquiry before registering the FIR.
- A **non-cognizable offence** is the offence listed under the first schedule of the Indian Penal Code and is bailable in nature. In the case of a non-cognizable offence, the police cannot arrest the accused without a

warrant as well as cannot start an investigation without the permission of the court. The crimes of forgery, cheating, defamation, public nuisance, etc., fall in the category of non-cognizable crimes.

Q 46.B

- **Recently, a new genus of parasitic flowering plant called *Septemeranthus* has been discovered in the Nicobar group of islands. It grows on the plant species *Horsfieldia glabra* (Blume) Warb. The parasitic flowering plants have a modified root structure spread on the stem of the tree and are anchored inside the bark of the host tree.**
 - The plant was found on the periphery of the tropical forest in one of the biodiversity hotspots referred to as the Nicobar group of islands separated from the Andaman group of Islands.
- The genus *Septemeranthus* has a distinct vegetative morphology, inflorescence architecture and floral characters. The leaves of the plant are heart-shaped with a very long tip and the ovary, fruit and seeds are 'urceolate' (earthen pot-shaped).
 - The flowers have five persistent bracts having conspicuous margins. The name *Septemeranthus* is derived from the Latin word 'septem' meaning 'seven', referring to the arrangement of flowers.
 - **What makes the *Septemeranthus* unique is that it is endemic only to the Nicobar group of islands**
- The genus belongs to the family Loranthaceae, a hemi-parasite under the sandalwood order Santalales and is of widespread importance. **Plants which are hemi-parasites are partially dependent on their host plants for nutrition.**
- **Hemi-parasites include are commonly referred to as mistletoes. They need a host tree or shrub in order to thrive and exhibit a worldwide distribution in tropical as well as temperate habitats that evolved approximately five times in order and are important in forest ecology, pathology and medicine.**
 - They play an important role as they provide food for frugivorous birds. In addition to *Septemeranthus*, four other genera on non-parasitic plants, *Nicobariodendron* (Hippocrateaceae), *Pseudodiplospora* (Rubiaceae), *Pubistylis* (Rubiaceae), *Sphyranthra*, (Euphorbiaceae) have also been discovered earlier from Nicobar group of islands, highlighting the ecological significance of the region.
 - A frugivore thrives mostly on raw fruits or succulent fruit-like produce of plants such as roots, shoots, nuts and seeds
 - Recently a new species in the hemiparasitic family Loranthaceae, *Dendrophthoe lalji* has also been discovered from the Nicobar group of islands.
- *Septemeranthus* seeds have the potential of pseudo viviparous germination that deposit on the leaves and branches of their same plant which is already attached to host plants.
- **Hence option (b) is the correct answer.**

Q 47.B

- The 42nd Amendment Act of 1976 added four new Directive Principles to the original list. They require the State:
 - **To secure opportunities for the healthy development of children (Article 39).**
 - To promote equal justice and to provide free legal aid to the poor (Article 39 A).
 - To take steps to secure the participation of workers in the management of industries (Article 43 A).
 - **To protect and improve the environment and safeguard forests and wildlife (Article 48 A).**
- **The 44th Amendment Act of 1978 added only one more Directive Principle, which requires the State to minimize inequalities in income, status, facilities, and opportunities (Article 38).**
- The 86th Amendment Act of 2002 changed the subject matter of Article 45 and made elementary education a fundamental right under Article 21A.
- The amended directive requires the State to provide early childhood care and education for all children until they complete the age of six years.
- The 97th Amendment Act of 2011 added a new Directive Principle relating to cooperative societies. It requires the state to promote voluntary formation, autonomous functioning, democratic control, and professional management of cooperative societies (Article 43B).
- **Hence option (b) is the correct answer.**

Q 48.B

- Recently, the third progress report of the Antimicrobial Resistance (AMR) Industry Alliance was released.
- **The AMR Industry Alliance is a private-sector coalition working to tackle AMR, bringing together research and development pharmaceutical, generic, biotechnology and diagnostics companies together. Hence, statement 1 is not correct.**

- The Alliance's contributions to combating AMR are reflected in the report's wide range of AMR activities, which include: (A) Research and science (B) access (C) Appropriate use (D) Manufacturing, and the environment.
- In order to mitigate the environmental risks associated with antibiotic production, Alliance manufacturing members had developed **Common Antibiotic Manufacturing Framework (CAMF) in 2018**. CAMF provides a methodology and set of minimum requirements needed to conduct a site risk evaluation of both macro and micro controls in our supply chains. **Hence, statement 2 is correct.**

Q 49.B

- As per Article 18 of the Indian Constitution, no title, not being a military or academic distinction, shall be conferred by the State. No citizen of India shall accept any title from any foreign State. Thus Article 18(1) abolishes all titles. It prohibits the State to confer titles on anybody whether a citizen or a non-citizen. **Military and academic distinctions are, however, exempted from the prohibition. Hence statement 1 is not correct.**
- **No person who is not a citizen of India shall**, while he holds any office of profit or trust under the State, accept without the consent of the President any title from any foreign State. **Hence statement 2 is correct.**
- No person holding any office of profit or trust under the State shall, without the consent of the President, accept any present, emolument, or office of any kind from or under any foreign State. Therefore, the Article places an obligation on both the State and the citizen: the former to not recognize or confer a title and the later, to not accept one.
- It is also to be noted that there is absolutely no penalty for infringement of the above prohibition of titles. Article 18 is merely directory. However, it is on to the Parliament to make laws for dealing with such persons who accept a title in violation of the prohibition prescribed in Article 18. No such law has been passed by the Parliament so far.

Q 50.A

- **Ministry of Social Justice and Empowerment has recently launched the Scheme for Economic Empowerment of DNTs (SEED) for the welfare of De-notified, Nomadic and Semi Nomadic Communities.**
 - The De-notified, Nomadic and Semi-Nomadic Tribes are the most neglected, marginalized and economically and socially deprived communities. Most of them have been living a life of destitution for generations and still continue to do so with an uncertain and gloomy future.
- **There are four components of the scheme**
 - Educational empowerment- Free coaching to students from these communities for Civil Services, entry to professional courses like medicine, engineering, MBA, etc.
 - Health Insurance through PMJAY of National Health Authority.
 - Livelihoods to support income generation, and
 - Housing (through PMAY/IAY)
- **There is no MSP type mechanism for minor forest produce to support tribes under the scheme. Hence, statement 2 is not correct.**
- A budget of Rs.200 crore has been earmarked and the timeline of scheme is five years beginning 2021-22. Development and Welfare Board for DNTs, SNTs & NTs has been tasked with the implementation of scheme. De-notified Tribes' stands for those communities which were notified as 'born criminals' under colonial-era Criminal Tribes Act (CTA) 1871. Post-independence, CTA, 1871 was repealed, and these communities were "De-Notified". It was replaced with Habitual Offenders Act, 1952.
- The Scheme will be **implemented through** an online portal, developed by **the Department of Social Justice & Empowerment**. The portal consists of two modules - Registration Module and Scheme Module. The funds will be transferred directly to the beneficiaries in their account. The other implementing agencies are **Ministry of Rural Development, National Rural Livelihood Mission (NRLM) and National Health Authority (NHA)**. **Hence statement 1 is correct.**
- Other steps for DNTs:
 - Setting up of Renke Commission in 2008 and National Commission in 2015 under the chairmanship of Shri Bhiku Ramji Idade.
 - Nomads and semi-nomads are applied to 'social groups who undertook a fairly frequent, usually seasonal physical movement as part of their livelihood strategy in the recent past.

Q 51.D

- Recently, sun emitted a large solar flare that was observed by NASA's Solar Dynamics Observatory (SDO).
- **Solar flares are a sudden explosion of energy caused by reorganizing of magnetic field lines near sunspots. Hence, statement 1 is correct.**
 - Solar magnetic cycle that works in deep interior of Sun creates regions that rise to surface and appear like dark spots. These are sunspots.
 - They appear dark because they are cooler than other parts of Sun's surface.
- **In a solar flare, energy stored in sun's magnetic structures is converted into light and heat energy.** This causes emission of high energy x-ray radiation and highly accelerated charged particles to leave the sun's surface. **Hence, statement 2 is correct.**
- **Geomagnetic storm** is a major disturbance in Earth's magnetosphere that occurs when there is a very efficient exchange of energy from the solar wind into the space environment surrounding the planet.
 - **These storms are triggered by powerful blasts of radiation called solar flare. Hence, statement 3 is correct.**
 - One of its impact is that, **Astronauts on spacewalks face health risks from possible exposure to solar radiation.**

Q 52.D

- **Protection of Life and Personal Liberty: Article 21 declares that no person shall be deprived of his life or personal liberty except according to procedure established by law. This right is available to both citizens and non-citizens.**
- The scope of Article 21 was a bit narrow till the 1950s as it was held by the Supreme Court in A. K. Gopalan vs. State of Madras Case 1950. In this case, it was held that under article 21 protection is available only against the arbitrary actions of the executive i.e. against the procedure that has been established by law. This protection does not include the arbitrary legislative actions by which laws are formulated.
- **The majority judgment in the Gopalan case was, however, overturned in Maneka Gandhi v. Union of India Case 1978 by taking a wider interpretation of Article 21.** Therefore it ruled that a law made by the state, which seeks to deprive a person of his personal liberty, must prescribe a procedure for such deprivation which must not be arbitrary, unfair, or unreasonable. In another word, it has introduced the American expression "due process of law". In effect, the protection under article 21 should be available not only against arbitrary executive action but also against arbitrary legislative actions. **But, the expression 'due process of law' which also covers arbitrary legislative action is not explicitly mentioned in the Indian Constitution. Hence, statement 1 is correct.**
- This right has been provided against the State only. State here includes not just the government, but also, government departments, local bodies, the Legislatures, etc. **Any private individual encroaching on these rights of another individual does not amount to a violation of Article 21. Hence, statement 2 is correct.**
- **Article 21 cannot be suspended during an emergency. Hence, statement 3 is correct.**
- The right to move freely throughout the territory of India is bestowed under Article 19 of the Indian constitution, however, the right to leave including travel abroad and the right to come back to the country has been derived from the right to life and personal liberty provided under Article 21. **Hence, statement 4 is correct.**

Q 53.C

- The Fundamental Duties in the Indian Constitution are inspired by the Constitution of the erstwhile USSR. Notably, none of the Constitutions of major democratic countries like the USA, Canada, France, Germany, Australia, and so on specifically contain a list of duties of citizens. Japanese Constitution is, perhaps, the only democratic Constitution in the world that contains a list of duties of citizens. The socialist countries, on the contrary, gave equal importance to the fundamental rights and duties of their citizens. Hence, the Constitution of the erstwhile USSR declared that the citizen's exercise of their rights and freedoms was inseparable from the performance of their duties and obligations.
- The original constitution contained only the fundamental rights and not the fundamental duties. In other words, the framers of the Constitution did not feel it necessary to incorporate the fundamental duties of the citizens in the Constitution. However, they incorporated the duties of the State in the Constitution in the form of Directive Principles of State Polity. Later in 1976, the fundamental duties of citizens were added in the Constitution. In 2002, one more Fundamental Duty was added. **Hence option (c) is the correct answer.**

Q 54.D

- Fundamental Rights are included in Part-III of the Indian constitution which is also known as the Magna Carta of the Indian Constitution. **FRs are defended and guaranteed by the Supreme Court. Hence, the aggrieved person can directly go to the Supreme Court, not necessarily by way of appeal against the judgment of the high courts. Hence, statement 1 is correct.**
- All the Fundamental Rights are suspended during National Emergencies except the rights guaranteed under **Articles 20 and 21**. The state can impose various restrictions on Fundamental rights. (They are not absolute but qualified). The grounds for imposing these restrictions vary according to the freedom sought to be restricted and include national security, public order, decency and morality, contempt of court, incitement to offenses, and defamation. It can also be restricted during **military rule (martial law) in any particular area. Hence, statement 2 is not correct.**
- They are not sacrosanct or permanent. The parliament can curtail or repeal them but only by a constitutional amendment act and not by an ordinary act. Moreover, this can be done without affecting the basic structure of the constitution. **Hence, statement 3 is not correct.**

Q 55.C

- Recently, 10 protected areas in Switzerland, France and Italy entered IUCN Green List of Protected and Conserved Areas.
- **About IUCN Green List of Protected and Conserved Areas**
 - It is the first global standard of best practice for area-based conservation. It is a programme of certification for protected and conserved areas – national parks, natural World Heritage sites, community conserved areas, nature reserves etc. that are effectively managed and fairly governed. Its **objective is to provide a global benchmark to assess whether protected and conserved areas are achieving successful conservation** outcomes through effective and equitable governance and management. **Hence statement 1 is correct.**
 - It aims to increase the number of natural areas delivering long-lasting conservation results for people and nature. The sites admitted to the IUCN Green List have distinguished themselves through exemplary management, fair governance, and a long-term commitment to successful conservation. **Presently, 59 sites in 16 countries have made it to the list. No Indian site is currently part of this list. Hence, statement 3 is correct.**
 - The IUCN Green List Standard is organized into 4 components of successful nature conservation in protected and conserved areas. The baseline components concern: Good Governance; Sound Design & Planning; and Effective Management.
 - Together, these support the component on Successful Conservation Outcomes attesting to the successful achievement of an area's goals and objectives.
- Sites join the IUCN Green List by committing to achieving its standard. They become certified once they demonstrate a high bar of environmental and social performance. The time from application to certification depends on the management quality of the site at the time of application. Sites choose when they are ready for evaluation, and have up to a maximum of five years to achieve certification, which is valid for a five year period.
- During that time, sites are regularly evaluated and reviewed against a set of demanding criteria. Enrolled sites therefore benefit from expert guidance on how to improve their performance and impacts. They also become part of a network, fostering exchange and learning among conservation practitioners. **But the sites do not receive any monetary assistance from Global Environment Facility. Hence, statement 2 is not correct.**

Q 56.D

- **Qualifications of Judges A person to be appointed as a judge of the Supreme Court should have the following qualifications:**
 - He should be a citizen of India.
 - He should have been a judge of a High Court (or high courts in succession) for five years; or
 - He should have been an advocate of a High Court (or High Courts in succession) for ten years
 - He should be a distinguished jurist in the opinion of the president.
- From the above, it is clear that the Constitution has not prescribed minimum age for appointment as a judge of the Supreme Court.
- **Qualifications of Judges A person to be appointed as a judge of a high court, should have the following qualifications:**
 - He should be a citizen of India.
 - He should have held a judicial office in the territory of India for ten years; or

- He should have been an advocate of a high court (or high courts in succession) for ten years. **Hence statement 3 is correct.**
- From the above, it is clear that the Constitution has not prescribed a minimum age for appointment as a judge of a high court. **Hence statement 2 is correct.**
- Moreover, unlike in the case of the Supreme Court, the Consitution makes no provision for the appointment of a distinguished jurist as a judge of a high court **Hence statement 1 is not correct.**

Q 57.C

- **The Constitution (Eighty-sixth Amendment) Act, 2002 inserted Article 21-A in the Constitution of India to provide free and compulsory education of all children in the age group of six to fourteen years as a Fundamental Right in such a manner as the State may, by law, determine.**
- Article 21-A may be read with new substituted Article 45 and new clause (k) inserted in Article 51-A by the Constitution (86th Amendment) Act, 2002. **With reference to Article 51-A (k), which imposes a Fundamental Duty on Parents/Guardians to provide opportunities for education to their child or, as the case may be, ward, between the age of six and fourteen years.**
- Article 45 states that the "State shall endeavor to provide early childhood care and education for all children until they complete the age of six years".
- **Hence option (c) is the correct answer.**

Q 58.A

- **Recently, the United Nations Environment Programme (UNEP), called on global governments to adopt a new 'Fire Ready Formula,' as it warned that incidences of wildfires would rise in the future. UNEP's Fire Ready Formula envisages 66% of spending to be devoted to planning, prevention, preparedness, and recovery and the remaining 34% to be spent on response.**
- **Wildfire vs Forest Fire**
 - National Institute of Disaster Management (NIDM) defines Forest fire as an unclosed and freely spreading fire that consumes natural fuels. When a fire burns out of control it is known as Wildfire.
 - India has a strong legal and institutional arrangement for forest fire prevention and management.
 - As per, **the Indian Forest Act of 1927** it is a criminal offense to burn or to allow a fire to remain burning in reserved and protected forests.
 - **Wildlife (Protection) Act, 1972** further prohibits setting fire in wildlife sanctuaries. Ministry of Environment, Forest, and Climate Change (MoEFCC) is the nodal ministry.
- **National Action Plan on Forest Fires (NAPFF), 2018 has been formulated to minimize forest fires.** Forest Fire Prevention and Management (FPM) Scheme: It is a centrally sponsored scheme launched in 2017 which is specifically dedicated to assist the states in dealing with forest fires. The International Tropical Timber Organization (ITTO) is an intergovernmental organization promoting the sustainable management and conservation of tropical forests and the expansion and diversification of international trade in tropical timber from sustainably managed and legally harvested forests.
- **Hence, option (a) is the correct answer.**

Q 59.C

- Poliomyelitis (polio) is a highly infectious viral disease. **Polio usually affects children under five,** sometimes leading to irreversible paralysis. Death can occur when breathing muscles are affected. **Hence, statement 1 is correct.**
- It may affect the spinal cord causing muscle weakness and paralysis. **Hence, statement 3 is correct.**
- It can be transmitted by person-to-person spread mainly through the faecal-oral route or, less frequently, by a contaminated water or food.
- Recently, **Malawi** has recorded Africa's first **wild poliovirus (WPV) case in five years.** Wild polio is caught from the environment, but there is another type of polio linked to the **oral vaccine (which contains live, weakened virus)** that is equally worrying. It can linger in the gut, mutate and spread in areas where few people are vaccinated. There have been **outbreaks of this form of polio in more than 20 African countries in recent years.** There is no cure but the polio vaccine protects children for life.
- There are 3 strains of WPV- type 1, type 2 and type 3.
 - Type 2 was eradicated in 1999.
 - No case of type 3 has been found since 2012.
 - Since **February 2022, Pakistan** has reported **ten WPV1 cases.** Also, countries like **Israel, Malawi, Mozambique** reported cases of **type 1 WPV** in recent months. **Hence, statement 2 is not correct.**

Q 60.D

- The new chairman of the Indian Space Research Organisation has stated that ISRO's indigenous new launch rockets, called the **Small Satellite Launch Vehicle (SSLV)** will be launched this year.
- The SSLV is intended to cater to a market for the launch of small satellites into low earth orbits which has emerged in recent years on account of the need for developing countries, private corporations, and universities for small satellites.
- SSLV has been designed to meet "Launch on Demand" requirements in a cost-effective manner. It is a **3 stage Launch Vehicle** configured with three Solid Propulsion Stages and liquid propulsion based Velocity Trimming Module (VTM) as a terminal stage. **All three stages of the SSLV will be solid propulsion stages. It has a capability to launch upto 500 kg satellite mass into 500 km Low Earth Orbit.** Geostationary orbit, is a circular geosynchronous orbit 35,786 km in altitude above Earth's Equator and following the direction of Earth's rotation. **Hence statements 2 and 3 are not correct.**
- After the initial developmental flights, ISRO, through its commercial arm, **NewSpace India Limited (NSIL)**, is planning to manufacture SSLV through Indian Industries. **Hence, statement 1 is not correct.**

Q 61.B

- Recently, the First **Colombo Security Conclave (CSC)** Virtual Workshop on Developing Regional Cyber Security Capabilities on Defensive operations, Deep/Dark web handling and Digital Forensics was held.
- CSC is the renamed version of National Security Advisor (NSA) Level Trilateral on Maritime Security (of 2011) with **India, Sri Lanka, Maldives** as members. Mauritius joined CSC as a fourth member in March, 2022. **Bangladesh and Seychelles** are observer members of the CSC.
- **Therefore, option (b) is the correct answer.**

Q 62.A

- **Meaning and Concept of Special Leave Petition (SLP)**
 - Special Leave Petition (SLP) holds a chief place in the Judiciary of India. Supreme Court has been provided a residual power that is to be exercised only in cases where arises a substantial question of law or gross injustice has been done.
 - Under this, the aggrieved party is provided a special permission to be heard in Apex Court in appeal against the order or judgment of any court or tribunal in the territory of India.
 - This is not an appeal but a petition filed for an appeal. After the filing of SLP, the Supreme Court may hear the matter and if it deems fit may grant 'leave' and that petition will be converted to appeal. The Supreme Court may accept or reject the same. After that SLP shall become an appeal and the court may hear the matter and accordingly pass judgment.
 - It is a discretionary power and hence, cannot be claimed as a matter of right. It can be granted in any judgement whether final or interlocutory.
- **Provision for Special Leave Petition (SLP) under Constitution of India**
- **Art .136. Special leave to appeal by the Supreme Court**
 - Notwithstanding anything in this Chapter, the Supreme Court may, in its discretion, grant special leave to appeal from any judgment, decree, determination, sentence or order in any cause or matter passed or made by any court or tribunal in the territory of India
 - Nothing in clause (1) shall apply to any judgment, determination, and sentence or order passed or made by any court or tribunal constituted by or under any law relating to the Armed Forces. **Hence statement 1 is correct.**
- Article 136 of the Indian Constitution gives power to Supreme Court to grant special permission or leave to the aggrieved party to appeal against the order or judgment passed by any court or any tribunal.
- **Time limit to file SLP**
 - It can be filed against any judgment of High Court within 90 days from the date of judgment or
 - It can be filed within 60 days against the order of High Court refusing to grant the certificate of fitness for appeal to Supreme Court. **Hence statement 2 is not correct.**
- **Who can file SLP?**
 - SLP can be filed by aggrieved party against the judgment or order of refusal to grant certificate.
 - SLP can be filed in a case where a substantial question of law arises or gross injustice has been done. Under this, the aggrieved party is provided a special permission to be heard in Apex Court in appeal against the order or judgment of any court or tribunal in the territory of India.
 - The aggrieved party has to give a brief synopsis of the facts and issues presented in the case along with the list of dates.
 - **The dismissal of an SLP against an order or judgment of a lower forum is not an affirmation of the same. High Courts can still review its own judgment even if the SLP is rejected by the Supreme Court.**

Q 63.A

- Recently, the president of **Turkmenistan** has reportedly ordered the **closure of the Gates of Hell**. **Officially known as Darvaza carter**, it formed in the early 1970s due to a **collapse of land in a Soviet gas drilling expedition**. Scientists lit the massive hole for preventing the spread of natural gas. Ever since the Gates of Hell have been burning. The site soon became a tourist attraction, attracting people from across the globe. **Hence pair 1 is not correctly matched.**
- **The United Nations has called on Yemen's** internationally recognised government to allow the entry of communications equipment to the airport in the **rebel-held capital, Sanaa**. Yemen has been wracked by civil war since 2014, pitting the government, which is supported by a Saudi-led coalition, against the Iran-backed Houthis, who control much of the north. **Hence pair 2 is correctly matched.**
- In the ongoing Russia-Ukraine war, Russian military forces have seized control of the **Chernobyl nuclear power plant in Ukraine**. An explosion at Chernobyl in 1986 led to the worst nuclear disaster in human history, both in cost and casualty. **Hence pair 3 is not correctly matched.**
- **Renkoji temple is a Buddhist temple in Tokyo, Japan**. It is assumed to be the **purported location of the ashes of Netaji Subhas Chandra Bose, which have been preserved since September 18, 1945**. Recently, Tokyo's Renkoji temple gave permission to Indian authorities to conduct DNA tests on ashes said to be those of Netaji Subhas Chandra Bose, according to fresh translation of a letter which refutes claims that the temple was "reticent", placing doubts on a commission of enquiry's ruling that the ashes were not Netaji's. **Hence pair 4 is not correctly matched.**

Q 64.C

- **Article 25 of the Indian Constitution** covers not only religious beliefs (doctrines) but also religious practices (rituals). Moreover, these rights are available to all persons—citizens as well as non-citizens. However, these rights are subject to public order, morality, health, and other provisions relating to fundamental rights. Further, the State is permitted to:
 - regulate or restrict any economic, financial, political, or other secular activity associated with religious practice; and
 - provide for social welfare and reform or throw open Hindu religious institutions of a public character to all classes and sections of Hindus.
- Article 25 also contains two explanations:
 - one, wearing and carrying of kirpans is to be included in the profession of the Sikh religion; **Hence statement 1 is correct.**
 - and two, the Hindus, in this context, include Sikhs, Jains, and Buddhists; **Hence statement 2 is correct.**
- Article 48 of the Constitution of India is one of the Directive Principles which directs the state to make efforts for banning animal slaughtering of cows and calves and other milch and draught cattle. It further states to organize agriculture and animal husbandry on modern and scientific lines. **Hence statement 3 is correct.**

Q 65.A

- Contempt of court seeks to protect judicial institutions from motivated attacks and unwarranted criticism, and as a legal mechanism to punish those who lower its authority.
- The expression 'contempt of court' has not been defined by the Constitution.
- This follows the initiation of contempt proceedings by the Supreme Court of India, on its own motion.
- The concept is several centuries old. In England, it is a common law principle that seeks to protect the judicial power of the king, initially exercised by himself, and later by a panel of judges who acted in his name.
- **Violation of the judges' orders was considered an affront to the king himself. Later, any disobedience against judges and/or disrespect towards them or their order became punishable.**
- When the Constitution was adopted, contempt of court was made one of the restrictions on freedom of speech and expression.
- Separately, Article 129 of the Constitution conferred on the Supreme Court the power to punish contempt of itself. Article 215 conferred a corresponding power on the High Courts. The Contempt of Courts Act, 1971, gives statutory backing to the idea. **Hence statement 1 is correct.**

Civil Contempt

- It is committed when someone wilfully disobeys a court order, or wilfully breaches an undertaking given to court.

Criminal Contempt

- words, written or spoken, signs and actions that “scandalise” or “tend to scandalise” or “lower” or “tends to lower” the authority of any court
- prejudices or interferes with any judicial proceeding and
- The punishment for contempt of court is simple imprisonment for a term up to six months and/or a fine of up to 2,000.

What is not contempt of court?

- Fair and accurate reporting of judicial proceedings will not amount to contempt of court. Nor is any fair criticism on the merits of a judicial order after a case is heard and disposed of. Is truth a defence against a contempt charge?
- For many years, truth was seldom considered a defence against a charge of contempt. There was an impression that the judiciary tended to hide any misconduct among its individual members in the name of protecting the image of the institution. The Act was amended in 2006 to introduce truth as a valid defence, if it was in public interest and was invoked in a bona fide manner.
- **As per Contempt of Courts Act 1971, in the case of the Supreme Court, the Attorney General or the Solicitor General, and in the case of High Courts, the Advocate General, may bring in a motion for initiating a case of criminal contempt.**
- However, if the motion is brought by any other person, the consent of the Attorney General or the Advocate General in writing is required.
- AG’s consent is mandatory when a private citizen wants to initiate a case of contempt of court against a person. If AG denies, the petition ends there itself. **Hence statement 2 is not correct.**
- The objective behind AG’s consent is to save the judicial time of the court as it will be wasted if a frivolous petition occurs.
- AG’s consent is not required when the court itself initiates a contempt of court case (suo motu) as it did in the Prashant Bhushan case.

Q 66.C

- Election campaigns are the means by which candidates and political parties prepare and present their ideas and positions on issues to the voters. **Online campaign** not only includes promoting political and electoral campaign material on **social media platforms such as Twitter, Facebook and Instagram**, it also includes reaching out to voters with **audio message, phone calls, videos and LED screen-mounted vans** from small town to remote villages. **Hence statement 2 is not correct.**
- **Social media regulations by EC in India**
 - **Candidates need to submit authentic social media account details at the time of nomination. Hence statement 1 is correct.**
 - **Rules of pre-certification of political advertisements are applicable on social media platforms. Hence statement 3 is correct.**
 - Provisions of Model Code of Conduct are applicable on content posted.
 - Inclusion of Social media expenditure in final expenditure statement on advertisement.
 - Social Media Cell set up by ECI for monitoring.
- Due to the ongoing pandemic and associated health risks, recently EC put temporal restrictions on physical rallies for upcoming state elections while allowing virtual campaigns through social media platforms.

Q 67.A

- **Indian federation differs from traditional federal systems insofar as it empowers parliament to alter the territory or integrity of its units, namely states, without their consent or concurrence by Article 3 of the Indian constitution. Hence statement 1 is correct.**
- To be more precise, our constitution is quasi-federal in nature yet the union has the last say and has powers to override any state’s decision. For all these reasons, India is known to be a union of states and not a federation of states like the countries of the United States of America, wherein the Federation does not have the power to create new states or alter the borders of existing states.
- Where the federal system is the result of an agreement between the units and the federal government, it cannot be altered unilaterally, that’s why the American federation is the indestructible union of indestructible states. **Whereas Indian Federation is not the result of any agreement, hence it is the indestructible union of destructible states. Hence statement 2 is not correct.**
- Article 1 of the Constitution of India describes India as a Union of States. Although, the Constitution is federal in structure, Dr B. R. Ambedkar while submitting the draft clearly specified the advantages of using the term union over the federation. Usage of the term union indicates that the Indian state is not the

result of some sort of arrangement among the states and these states have no right or freedom to secede from India.

Q 68.C

- In 1976, the Congress Government established a committee that was recognized as the Swaran Singh Committee. It was established for making recommendations regarding the necessity of including the fundamental duties in our Indian Constitution. The necessity for including the duties was felt during the operation of the internal emergency in the entire country. **Hence statement 1 is not correct.**
- According to the Swaran Singh Committee, the Fundamental Duties of the citizens of India should have been incorporated as a distinct division in the Indian Constitution. The committee solely focused on the fact that the citizens of the country are not aware of their duties. It was at this crucial time that they should be aware of the duties that they should take care of, apart from the rights that are given to them.
- **Under the Fundamental Duties, it was proposed to make incorporation of the eight Fundamental Duties in the Indian Constitution (which was later increased to ten, then added by the Government of India). Hence statement 2 is not correct.**
- **Additionally, it was also recommended that the Parliament may provide legislation for the imposition of penalty or punishment for non-observance or infringement of duties. Hence statement 3 is correct.**

Q 69.B

- Like any other part of the Constitution, the Preamble was also enacted by the Constituent Assembly, but, **after the rest of the Constitution was already enacted.** The reason for inserting the Preamble at the end was to ensure that it was in conformity with the Constitution as adopted by the Constituent Assembly. **Hence statement 1 is not correct.**
- The Preamble reveals four ingredients or components:
 - **Source of authority of the Constitution:** The Preamble states that the Constitution derives its authority from the people of India. **Hence statement 2 is correct.**
 - Nature of Indian State: It declares India to be of a sovereign, socialist, secular democratic and republican polity.
 - Objectives of the Constitution: It specifies justice, liberty, equality and fraternity as the objectives.
 - Date of adoption of the Constitution: It stipulates November 26, 1949 as the date.
- The question as to whether the Preamble can be amended under Article 368 of the Constitution arose for the first time in the historic case of Kesavananda Bharati (1973). It was urged that the Preamble cannot be amended as it is not a part of the Constitution. The petitioner contended that the amending power in Article 368 cannot be used to destroy or damage the basic elements or the fundamental features of the Constitution, which are enshrined in the Preamble. The Supreme Court, however, held that the Preamble is a part of the Constitution.
- **The Preamble has been amended only once so far, in 1976, by the 42nd Constitutional Amendment Act,** which has added three new words— Socialist, Secular and Integrity—to the Preamble. This amendment was held to be valid. **Hence statement 3 is correct.**

Q 70.B

- The British parliament passed the Government of India Act in 1935 which came into effect in 1937. It was based on a report by a Joint Select Committee, led by Lord Linlithgow, which set up the two houses of the British parliament. The report, in turn, was the result of the Joint Committee's scrutiny of the 'White Paper' – a scheme of constitutional proposals - prepared by the British government close on the heels of the Round Table conferences.
- Some of the key features of the Act were:
- **The creation of a 'Federation of India' consisted of two levels: a central executive and parliament, and below it, provinces and princely states. Hence statement 1 is not correct.** However, it was optional for the Indian States to join the Federation; and since the Rulers of the Indian States never gave their consent, the Federation envisaged by the Act of 1935 never came into being.
- **Dyarchy at the Centre:** The executive authority of the Centre was vested in the Governor-General, whose functions were divided into two groups:
 - The administration of defence, external affairs, ecclesiastical affairs, and of tribal affairs to be made by the Governor-General in his discretion.
 - With regards to matters other than the reserved subjects, the Governor-General was to act in the advice of the 'Council of Ministers' who were responsible to the legislature. **Hence statement 2 is correct.**

Q 71.B

- **Recently, the Union Ministry of Culture** has announced that the **Hoysala temples of Belur, Halebid and Somnathapura in Karnataka** have been selected as **India's nomination for UNESCO's list of World Heritage sites for the year 2022-2023.**
- The temples representing the Hoysala Architecture style are collectively called '**The Sacred Ensembles of Hoysala**'. They have been on the **tentative list of UNESCO since 2014** and represent one of the highest points of human creative genius and stand testimony to the rich historical and cultural heritage of the country. Hoysala architecture is a building style that evolved between the 11th to 14th centuries under the Hoysala Empire's rule in the southern Deccan region and Kaveri River Valley.
- **Hoysala temples** are often referred to as **hybrid or Vesara temple** style because their distinctive design **tends to have a basic Dravidian style**, but also show a strong influence of '**Bhumija**' which is **seen in central India, along with 'Nagara' traditions of northern and western India.** They are easily distinguishable from other medieval temples by their highly original star-like ground-plans and a profusion of decorative carvings. Hoysala rulers were influenced by western Chalukyan architecture.
- Hoysala temples have several shrines arranged around a central pillared hall in the form of an intricately designed star (stellate-plan). The garbha griha (sanctum sanctorum) houses a centrally placed murti (enshrined icon) on a pitha (pedestal). The temple craftsmen carved their sculptures intricately because they were made of soapstone, a relatively soft stone. These sculptures can be seen in the gods' jewelry that adorns the temple walls.
- Both open and closed mandapas can be found in Hoysala architecture.
 - Hoysala temples have circular pillars in their mandapas. Each pillar has four sculpted figures on the top brackets.
 - The mandapa's ceilings are ornate, with mythological figures and floral designs.
 - Mandapa is basically a hall where groups of people used to gather for prayers.
- The vimana in Hoysala temples is simple on the inside though lavishly decorated on the outside.
 - Vimana is the point where the most sacred shrine is present.
 - On the uppermost part of the temple tower, the Hoysala temples have a vase-shaped water pot
- **Hoysala temples can also be found at places like**
 - Veera Narayana Temple, Belavadi
 - Lakshminarayana Temple, Hosaholalu
 - Ishvara Temple, Arasikere
 - Amrutesvara Temple, Amruthapura
 - Brahmeshvara Temple, Kikkeri
- **Hence, option (b) is the correct answer.**

Q 72.C

- **The Citizenship (Amendment) Act, 2015, replaced the nomenclature of "Overseas Citizen of India" with that of "Overseas Citizen of India cardholder. It must be noted here that the OCI is not actually dual citizenship as the Indian Constitution forbids dual citizenship or dual nationality (Article 9).**
- **The following benefits will be allowed to an OCI:**
 - **Multiple entries, multi-purpose life-long visa to visit India;**
 - **Exemption from reporting to Police authorities for any length of stay in India; and**
 - Parity with NRIs in financial, economic, and educational fields except in the acquisition of agricultural or plantation properties.
 - Registered Overseas Citizen of India shall be treated at par with Non-Resident-Indian in the matter of inter-country adoption of Indian children.
 - Registered Overseas Citizens of India shall be treated at par with resident Indian nationals in the matter of tariffs on air fares in domestic sectors in India.
 - **Registered Overseas Citizens of India shall be charged the same entry fee as domestic Indian visitors to visit national parks and wildlife sanctuaries in India**
 - Parity with Non-Resident Indians in respect of entry fees to be charged for visiting the national monuments, historical sites, and museums in India;
- **The OCI is not entitled to vote, be a member of Legislative Assembly or Legislative Council or Parliament, cannot hold constitutional posts such as President, Vice President, Judge of Supreme Court or High Court, etc. and he/she cannot normally hold employment in the Government.**
- **Hence, option (c) is the correct answer.**

Q 73.B

- Writs are written orders issued by the Supreme Court or a High Court directing constitutional remedies for Indian citizens who have had their basic rights violated. Habeas Corpus, Mandamus, Certiorari, Quo Warranto, and Prohibition are types of writs.
- **Habeas Corpus:** It is an order which is issued by the court to a person who has detained another person to produce the body of the latter before it. The court then examines the cause and the legality of the detention.
- **Mandamus:** It is a command which is issued by the court to the public official asking him to perform the official duties that he has failed or refused to perform.
- **Certiorari:** It is issued on the grounds of the excess of jurisdiction or the lack of jurisdiction or error of the law.
- **Quo-Warranto:** It is issued by the court to inquire into the legality of the claim of the person to the public office. Hence, it prevents an illegal usurpation of the public office by the person.
- **Only two pairs are correctly matched. Hence option (b) is the correct answer.**

Q 74.B

- Foreigners' Tribunals (FTs) are quasi-judicial bodies meant to determine whether a person is or is not a foreigner under Foreigner's Act, 1946. **Hence statement 1 is not correct and statement 2 is correct.**
- FTs were the first set up in 1964 and are unique to Assam. In the rest of the country, a foreigner apprehended by the police for staying illegally is prosecuted in a local court and later deported/put in detention centers.
- The FT consists of such a number of persons having judicial experience as the central government may think fit to appoint. Where the FT consists of two or more members, one of them shall be appointed as the Chairman. Generally, each FT is headed by a member who can be a retired judicial officer, bureaucrat or lawyer with a minimum of seven years of legal practice.
- Earlier, powers to constitute tribunals were vested only with the Centre. Recently amended Foreigners (Tribunal) Order, 2019 has empowered district magistrates in all States & Union Territories to set up tribunals to decide whether a person staying illegally in India is a foreigner or not. Between 1985 and February 28, 2019, Foreigners' Tribunals in Assam have declared 63,959 person foreigners in ex parte proceedings — or, in the absence of these persons.

Q 75.A

- **Article 13 declares that all laws that are inconsistent with or in derogation of any of the fundamental rights shall be void. It provides for the "doctrine of judicial review".** Supreme Court (according to Article 32) and the high courts (according to Article 226) can declare a law unconstitutional and invalid on the ground of contravention of any of the Fundamental Rights.
- It gives the Supreme Court and High court the authority to interpret the pre-constitutional and existing laws. **Hence, statement 1 is correct.**
- Article 13 declares that a constitutional amendment is not a law and hence cannot be challenged (24th amendment act). **However, the Supreme Court held in the Kesavananda Bharati case (1973) that a Constitutional amendment can be challenged on the ground that it violates a fundamental right that forms a part of the 'basic structure' of the Constitution and hence, can be declared as void. Hence, statement 2 is not correct.**

Q 76.A

- A mere declaration of fundamental rights in the Constitution is meaningless, useless and worthless without providing an effective machinery for their enforcement, if and when they are violated. Hence, Article 32 confers the right to remedies for the enforcement of the fundamental rights of an aggrieved citizen. In other words, the right to get the Fundamental Rights protected is in itself a fundamental right. This makes fundamental rights real. That is why Dr. Ambedkar called Article 32 as the most important article of the Constitution—'an Article without which this constitution would be a nullity. **It is the very soul of the Constitution and the very heart of it'. Hence option (a) is the correct answer.**
- The Supreme Court has ruled that Article 32 is a basic feature of the Constitution. Hence, it cannot be abridged or taken away even by way of an amendment to the Constitution. It contains the following four provisions:
 - The right to move the Supreme Court by appropriate proceedings for the enforcement of the Fundamental Rights is guaranteed.
 - The Supreme Court shall have power to issue directions or orders or writs for the enforcement of any of the fundamental rights. The writs issued may include habeas corpus, mandamus, prohibition, certiorari and quo-warranto.

- Parliament can empower any other court to issue directions, orders and writs of all kinds. However, this can be done without prejudice to the above powers conferred on the Supreme Court. Any other court here does not include high courts because Article 226 has already conferred these powers on the high courts.
- The right to move the Supreme Court shall not be suspended except as otherwise provided for by the Constitution. Thus the Constitution provides that the President can suspend the right to move any court for the enforcement of the fundamental rights during a national emergency (Article 359).
- It is thus clear that the Supreme Court has been constituted as the defender and guarantor of the fundamental rights of the citizens.

Q 77.A

- Article 226 of the Constitution empowers a high court to issue writs including habeas corpus, mandamus, certiorari, prohibition and quo warranto for the enforcement of the fundamental rights of the citizens and for any other purpose. The phrase 'for any other purpose' refers to the enforcement of an ordinary legal right. **Hence statement 2 is not correct.**
- The high court can issue writs to any person, authority and government not only within its territorial jurisdiction but also outside its territorial jurisdiction if the cause of action arises within its territorial jurisdiction.
- The writ jurisdiction of the high court (under Article 226) is not exclusive but concurrent with the writ jurisdiction of the Supreme Court (under Article 32). It means, when the fundamental rights of a citizen are violated, the aggrieved party has the option of moving either the high court or the Supreme Court directly.
- However, the writ jurisdiction of the high court is wider than that of the Supreme Court. This is because, the Supreme Court can issue writs only for the enforcement of fundamental rights and not for any other purpose, that is, it does not extend to a case where the breach of an ordinary legal right is alleged. **Hence statement 1 is correct.**
- In the Chandra Kumar case (1997), the Supreme Court ruled that the writ jurisdiction of both the high court and the Supreme Court constitute a part of the basic structure of the Constitution. Hence, it cannot be ousted or excluded even by way of an amendment to the Constitution

Q 78.C

- The elephant was adopted as the seal of the constituent assembly. H.V. Kamath once commented : "The emblem and the crest that we have selected for our assembly is an elephant. It is perhaps in consonance with that our constitution too is the bulkiest that the world has produced."
- S.N Mukherjee was appointed as a chief draftsman to the constituent assembly, and Dr. B.R Ambedkar was appointed as chairman of the drafting committee.
- Sir B.N Rau was appointed as a constitutional advisor to the constituent assembly.
- Other Important Facts:
 - The Secretary of the Constituent Assembly was H.V.R. Iyengar.
 - In the Constituent Assembly, S.N. Mukerjee was the chief draughtsman of the constitution.
 - The Indian Constitution's calligrapher was Prem Behari Narain Raizada. He handwrote the original constitution in a flowing italic style. **Hence statement 1 is correct.**
 - Artists from Shantiniketan, such as Nand Lal Bose and Beohar Rammanohar Sinha, beautified and adorned the original form.
 - Prem Behari Narain Raizada's original Preamble was lit, beautified, and adorned by Beohar Rammanohar Sinha.
 - Vasant Krishan Vaidya calligraphed the Hindi translation of the original constitution, which Nand Lal Bose exquisitely embellished and lighted. **Hence statement 2 is correct.**

Q 79.C

- **Founding fathers preferred the British parliamentary system due to the following reasons:**
 - **Familiarity with the System:-** The Constitution-makers were somewhat familiar with the parliamentary system as it had been in operation in India during the British rule. K.M. Munshi argued that, 'For the last thirty or forty years, some kind of responsibility has been introduced in the governance of this country. Our constitutional traditions have become Parliamentary. After this experience, why should we go back and buy a novel experience.'
 - **Preference to More Responsibility :-** Dr. B.R. Ambedkar pointed out in the Constituent Assembly that 'a democratic executive must satisfy two conditions: stability and responsibility. Unfortunately, it has not been possible so far to devise a system which can ensure both in equal degree. The American

system gives more stability but less responsibility. The British system, on the other hand, gives more responsibility but less stability. The Draft Constitution in recommending the parliamentary system of Executive has preferred more responsibility to more stability.' **Hence statement 1 is correct.**

- **Need to Avoid Legislative–Executive Conflicts :-** The framers of the Constitution wanted to avoid the conflicts between the legislature and the executive which are bound to occur in the presidential system prevalent in USA. They thought that an infant democracy could not afford to take the risk of a perpetual cleavage, feud or conflict or threatened conflict between these two organs of the government. They wanted a form of government that would be conducive to the manifold development of the country. **Hence statement 2 is correct.**
- **Nature of Indian Society:-** India is one of the most heterogeneous States and most complex plural societies in the world. Hence, the Constitution-makers adopted the parliamentary system as it offers greater scope for giving representation to various section, interests and regions in the government. This promotes a national spirit among the people and builds a united India.
- **Merits of parliamentary system:** 1. Harmony between legislature and executive. 2. Responsible government. 3. Prevents despotism. 4. Wide representation.
- **Demerits of parliamentary system:** 1. Unstable government. 2. **No continuity of policies.** 3. Against separation of powers 4. Government by amateurs. **Hence statement 3 is not correct.**
- **Merits of presidential form of government:** 1. Stable government. 2. Definiteness in policies. 3. Based on separation of powers. 4. **Government by experts.** **Hence statement 4 is not correct.**

Q 80.D

- **Direct Democracy**
 - **It is a form of self-government in which all collective decisions are taken through the direct participation of all adult citizens of the state in the spirit of equality and open deliberations. Hence statement 1 is not correct.**
 - **'Gram Sabha',** as envisaged in the 73rd Constitutional Amendment, is **an instance of direct democracy** in rural India. It is a body consisting of all persons whose names are included in the electoral rolls for the Panchayat at the village level. All the people collectively make a decision regarding matters concerning the village population. For instance, they approve of the plans, programmes and projects for social and economic development before such plans, programmes and projects are taken up for implementation by the Panchayat at the village level.
 - **Zila Parishad is the third tier** of the Panchayati Raj system which also includes Panchayat Samiti at block level and Gram panchayat at gram level. Zila Parishad has members elected directly by the people from different Panchayat samitis. It is a **form of indirect democracy. Hence statement 2 is not correct.**
 - Gram Panchayat is not a form of direct democracy as people choose representatives to the Panchayat.
 - The following principles apply in direct democracy:
 - People are sovereign
 - Sovereignty is inalienable and cannot be represented.
 - People must express their general will and make decisions
 - Decisions are to be based on majority rule

Q 81.B

- Amendment to the Constitution requires two different kinds of special majorities:
 - in the first place, those voting in favour of the amendment bill should constitute at least half of the total strength of that House.
 - Secondly, the supporters of the amendment bill must also constitute two-thirds of those who actually take part in voting. Both Houses of the Parliament must pass the amendment bill separately in this same manner (there is no provision for a joint session). For every amendment bill, this special majority is required.
- **In the Lok Sabha there are 545 members. Therefore, any amendment must be supported by a minimum of 273 members.** Even if only 300 members are present at the time of voting, the amendment bill must get the support of 273 out of them.

Q 82.A

- **Rann Utsav is a 3-month-long celebration at the spectacular white salt desert in Kutch, Gujarat..** With incredible folk dances, music, handicrafts stalls, adventure sports, and mouthwatering food, the festival showcases the beautiful heritage and culture of the region. Hundreds of luxury tents are spread out in the vast openness of the desert to accommodate tourists. **Hence, pair 1 is not correctly matched.**

- **Gangasagar Mela, occurs at West Bengal's Gangasagar (also known as Sagar) Island** where the Ganges enters the Bay of Bengal during Makar Sankranti every year. This confluence is also called Gangasagar or Gangasagara. It is one of the largest religious gatherings in India after the Kumbh Mela. **Hence, pair 2 is correctly matched.**
- **The Spituk Gustor Festival is a celebration of peace and prosperity. A symbol of traditional Ladakhi culture and traditions, this two-day festival showcases vibrantly colourful festivities. It is celebrated at the Spituk Monastery which is located approximately 8 km away from Leh.**
 - The annual festival is a winter celebration that aims at increasing brotherhood and friendship among believers. The mask dance, 'Chams' is one of the major attractions of the festival. Monks wearing colourful garbs perform enchanting dances, depicting different deities Paldan Lhamo, Mahakala, etc.
- **Hence, pair 3 is not correctly matched.**

Q 83.A

- Recently, The Reserve Bank of India (RBI) has said that the State Bank of India (SBI), ICICI Bank and HDFC Bank will continue to be identified as Domestic Systemically Important Banks (D-SIBs), under the same bucketing structure as in the 2020 list of D-SIBs. **Hence, statement 3 is not correct.**
- RBI places D-SIBs in appropriate buckets depending upon their Systemic Importance Scores (SISs).
- D-SIB means that the bank is too big to fail. According to the RBI, some banks become systemically important due to their size, cross-jurisdictional activities, complexity and lack of substitute and interconnection.
- Banks whose assets **exceed 2% of GDP** are considered part of this group. **Hence, statement 1 is correct.**
- **As per the framework, from 2015, the central bank has to disclose the names of banks designated as D-SIB. Hence, statement 2 is not correct.**
- Based on the bucket in which a D-SIB is placed, an additional common equity requirement is applied to it. Under RBI's 'Framework for dealing with D-SIBs',
 - SBI is placed in the third bucket, whereby it is required to maintain Additional Common Equity Tier 1 (CET1) at 0.60 per cent of its Risk Weighted Assets (RWAs).
 - ICICI Bank and HDFC Bank are placed in the first bucket, whereby they are required to maintain Additional CET1 at 0.20 per cent of their RWAs. RBI said the additional CET1 requirement is in addition to the capital conservation buffer.
- The Banks Board Bureau was originally set up to select the CEOs and Executive Directors of public sector banks. Later BBB was entrusted with the responsibility to select chiefs of insurance companies. However, the Delhi High Court last year ruled that BBB is not a competent authority to select the directors of state owned general insurers. The government is setting up the **Financial Services Institutions Bureau replacing BBB**, as a single entity for making recommendations for appointments of whole-time directors and non-executive chairman of banks and financial institutions.

Q 84.B

- The term separation of powers was initiated by Charles de Montesquieu. For the very first time, it was accepted by Greece and then it was widespread use by the Roman Republic as the Constitution of the Roman Republic. In 16th and 17th-century British politicians Locke and Justice Bodin, a French philosopher also expressed their opinion regarding this doctrine. Montesquieu was the first one who articulated this principle scientifically, accurately, and systemically in his book *Esprit des Lois* (The Spirit Of Laws) which was published in the year 1785.
- Independence of the Judiciary is an essential attribute of the Rule of Law which is the basic feature of the Constitution of India. Judiciary must not be free from executive pressure but also from other pressures. Separation of Judiciary from Executive as contained in Article 50 of Constitution of India in Part IV dealing with Directive Principles of State Policy (DPSP) states that the State shall take steps to separate the Judiciary from the Executive in the Public Services of the State. However, the DPSP does not contain any provision regarding the separation of powers between any other branches of the government. **Hence only option 1 is correct.**

Q 85.D

- Recently, the PM called youth to consider careers in sports and others to encourage the youth in the country to foster a sports culture in the country.
- Despite sports being an integral component of all-round human personality development and entertainment, India has very little to show as achievement in international sports. This can be evidently seen through the following-

- Limited international participation: India has had very few big names in international sports except in some sports like cricket.
- Poor performance in Olympics: At the recent Tokyo Summer Olympics and Paralympics, India had its best performance till date with 7 and 19 medals respectively.
- **Overall, India has won only 35 medals at the summer Olympics since 1900 edition.**
- **In the Winter Olympic Games India is yet to win a medal.** Similarly, it qualified only once for FIFA World Cup in 1950.
- **India's first individual Olympic gold medal was won by Abhinav Bindra in men's 10m air rifle shooting - Beijing 2008. Neeraj Chopra became India's second individual Olympic champion - after Abhinav Bindra - with his men's javelin throw gold at Tokyo 2020.**
- **Hence, all three statements are correct.**

Q 86.C

- **Recently, Assam government had issued a preliminary notification for adding 200.32 sq. km to the 78.82 sq. km Orang National Park,** the State's oldest game reserve, thus making it more than thrice its existing size.
 - Much of the area to be added comprises the Brahmaputra river and the sandbars or islands in it.
- **Orang National park is located on the northern bank of the river Brahmaputra in the Darrang and Sonitpur districts of Assam.** It was established as a sanctuary in 1985 and declared a National Park on 13 April 1999. **Hence statement 1 is not correct.**
 - It is also known as the mini Kaziranga National Park (IUCN site) since the two parks have a similar landscape made up of marshes, streams and grasslands and are inhabited by the Great Indian One-Horned Rhinoceros.
 - **The park has a rich flora and fauna, including Great Indian One-Horned Rhinoceros, pigmy hog, elephants, wild buffalo and tigers.** It is the only stronghold of rhinoceros on the north bank of the Brahmaputra river.
 - **The pigmy hog is the only member of its genus, Porcula, and there may be as few as 200 individuals left in the wild. Endemic to India,** they are restricted to very few locations around Manas National Park, Sonai Rupai Wildlife Sanctuary and Orang National Park
 - They are very small pigs standing at 20-30cm in height. The main threats pigmy hogs face are loss and degradation of habitat due to human settlements, agricultural encroachments, dry-season burning, livestock grazing, commercial forestry and flood control schemes. **Hence statement 2 is correct.**
- **The IBA programme of Birdlife International aims to identify, monitor and protect a global network of IBAs for conservation of the world's birds and associated biodiversity.** The IBAs serve as conservation areas for protection of birds at the global, regional or sub-regional level. BirdLife International is a worldwide alliance of nongovernmental organizations that promotes the conservation of birds and their habitats. **According to Birdlife International, the designation of IBAs is based on standardized criteria, namely**
 - hold significant numbers of one or more globally threatened bird species
 - be one of a set of sites that together hold a suite of restricted-range species or biome-restricted species
 - have exceptionally large numbers of migratory or congregatory birds.
- **Orang National park is identified as an Important Bird Area by Birdlife International due to its rich avian life.** 222 species of Birds have so far been recorded in Orang National park, some of which are Spot Billed Pelican, White Pelican, Greater Adjutant Stork, Lesser Adjutant Stork, Brahminy Duck, Pintail Duck, Bengal Florican. **Hence statement 3 is correct.**

Q 87.B

- **Recently, European Commission, in a global first, proposed a set of digital rights and principles. It is an extension of the Berlin declaration on Digital Society and Value Based Digital Government of EU council.**
- These principles aim to
 - Protect people's rights, support democracy and ensure a fair and safe online environment.
 - Provide a guide for policymakers and companies when dealing with new technologies.
 - Promote these principles as a standard for the world countries



- The Declaration aims to contribute to a value-based digital transformation by addressing and ultimately strengthening digital participation and digital inclusion in our societies.
 - In order to enable a value-based digital transformation, the countries that signed the declaration have agreed to carry out concrete measures by 2024 regarding, among other things, the digital sovereignty of their administrations, the promotion of civil society participation, digital inclusion and self-determination.
- The Berlin Declaration builds on the 2017 Tallinn Declaration on eGovernment. Tallinn Declaration on eGovernment is a commitment for European governments to each make significant progress on delivering high-quality, user-centric digital public services for citizens and seamless cross-border service provision for businesses.
- Coalition of the Willing is another initiative that aims to combine strengths in digital government transformation at EU level.
- Hence option (b) is the correct answer.

Q 88.A

- The Constitution of India was drafted by the Constituent Assembly, and it was implemented under the Cabinet Mission Plan on 16 May 1946.
- The representative of each community was to be elected by members of that community in the provincial legislative assembly. It followed the separate electorate system. **Hence statement 2 is not correct.**
- The representative of princely states was to be nominated by the heads of the princely states. So constituent assembly was partly elected and partly nominated body.
- The members of the Constituent Assembly were elected by the provincial assemblies by a single, transferable-vote system of proportional representation. M.K Gandhi was not a member of the constituent assembly. Hence statement 1 is correct.

- The constituent assembly also became a legislative body. In other words, two separate functions were assigned to the assembly, that is making the constitution for a free India and enacting the ordinary laws for the country. Thus the assembly became the first Parliament of free India. **Hence statement 3 is correct.**

Q 89.B

- Fundamental Rights and Directive Principles are complementary and supplementary to each other. **Whereas the Fundamental Rights establish political democracy, the Directive Principles establish economic and social democracy. Hence, statement 1 is not correct.**
- **DPSPs are the non-justiciable that is they are not legally enforceable by the courts for their violation. DPSPs require legislation for their implementation they are not automatically enforced. Hence, statement 2 is correct.**
- DPSPs facilitate stability and continuity in domestic and foreign policies in political, economic, and social spheres in spite of the changes of the party in power.

Q 90.D

- **The Constitution deals with citizenship from Articles 5 to 11 under Part II.** However, it contains neither any permanent nor elaborate provisions in this regard. It only identifies the persons who became citizens of India at its commencement (i.e., on January 26, 1950). It does not deal with the problem of acquisition or loss of citizenship subsequent to its commencement. It empowers the Parliament to enact a law to provide for such matters and any other matter relating to citizenship. Accordingly, the Parliament has enacted the Citizenship Act (1955), which has been amended from time to time. The last amendment came in the form of the Citizenship (Amendment) Act, 2019.
- The Citizenship Act of 1955 prescribes five ways of acquiring citizenship, viz, birth, descent, registration, naturalization, and incorporation of territory. Thus the Constitution does not provide any such ways of acquiring citizenship.
- **Hence option (d) is the correct answer.**

Q 91.D

- In India, a binding decision of the Supreme Court/High Court can be reviewed in a review petition. A review petition can be filed by the parties aggrieved by the decisions of Supreme Court. The provision of review is an exception to the principle of stare decisis as courts generally do not unsettle a decision, without a strong case.
- As per Article 137 of the Constitution of India and the rules made under Article 145, the Supreme Court of India has the power to review its judgment pronounced by it. **Hence statement 1 is correct.**
 - The Court may accept a review petition when a glaring omission or patent mistake or like grave error has crept in earlier by judicial fallibility.
 - When a review takes place, the Court will not take fresh stock of the case but just correct grave errors that have resulted in the miscarriage of justice. Also, judicial review can only correct a “patent error” and not “minor mistakes of inconsequential import”.
 - As per Supreme Court rules, 1966 such a petition is to be filed within 30 days of the pronouncement of judgment or order and that petition should be circulated without oral arguments to the same bench that delivered the judgment.
 - It is not necessary that only parties to a case can seek a review of the judgment on it. As per the Civil Procedure Code and the Supreme Court Rules, any person aggrieved by judgment can seek a review.
- **Supreme Court laid down three grounds for seeking a review of a verdict –**
 - the discovery of new and important matter or evidence which, after the exercise of due diligence, was not within the knowledge of the petitioner or could not be produced by him;
 - mistake or error apparent on the face of the record;
 - any sufficient reason that is analogous to the other two grounds.
- Furthermore, if a review petition is dismissed by the Supreme Court, it may consider a curative petition filed by the petitioner so as to prevent abuse of process. In accordance with Order XVII, Rule 1(1) of Code of Civil Procedure, 1908, a civil review petition can be moved. While a criminal review petition can be filed only on the ground of error apparent on the face of record.
- The Supreme court of India evolved the concept of curative petition in the landmark case of **Rupa Ashok Hurra vs. Ashok Hurra and Anr. (2002)** where a question was raised that whether an aggrieved person is entitled to any relief against the final order/judgment of the Supreme court after dismissal of review petition. **Hence statement 3 is correct.**

- In this case it was held by the Supreme court that so as to prevent abuse of process as well as to cure miscarriage of justice, it may reconsider its judgments. The court has devised a term 'curative' for this purpose. The petitioner is required to aver specifically that the grounds mentioned that had been taken in the review petition filed earlier and also it was dismissed by circulation.
- A curative petition is required to be certified by a senior advocate and then it is circulated to the three senior most judges and the judges who delivered the impugned judgment.
- There is no time limit for filing a curative petition and it is guaranteed under Article 137 of the Constitution of India. **Hence statement 2 is not correct.**

Q 92.C

- Features of Charter Act of 1833
 - **The Governor-General of Bengal became the Governor-General of India with exclusive legislative powers. Hence statement 1 is not correct.**
 - The presidencies of Bombay and Madras were deprived of their legislative powers.
 - The Governor-General of India was given civil and military powers.
 - The Government of India was created for the first time having the authority over the entire territorial area possessed by the British in India.
 - The Governor-General Council had the authority to amend, repeal or alter any law in the entire length and breadth of India for any British, Foreigner, or Indian.
 - **The activities of East India Company as a commercial body came to an end. The company purely became an administrative body. Hence statement 2 is correct.**
 - **The legislative and executive functions of the Governor-General's council were separated by the Charter Act 1853. This act served as the foundation of the modern parliamentary form of government. Hence statement 3 is not correct.**

Q 93.D

- The term liberty means the absence of restraints on the activities of individuals, and at the same time, providing opportunities for the development of individual personalities. The Preamble secures to all citizens of India liberty of thought, expression, belief, faith, and worship, through their fundamental rights, enforceable in a court of law, in case of violation. **The ideas of liberty, equality, and fraternity in our constitution have been taken from the French Revolution. Hence statement 1 is not correct.**
- Isaiah Berlin, in his seminal essay published in 1958 titled "Two Concepts of Liberty", speaks of two senses of freedom. The first is what he calls "negative liberty". This revolves around the existence of a private sphere where an individual can do as he or she pleases, free from the interference of any kind, whether from other individuals, communities, or the State, by oppressive social forces. The individual is free of any external barriers or constraints. The second is what he calls "positive liberty", which refers to the act of taking control over one's life and realising its fundamental purposes.
- The Constitution of India secures all citizens, liberty of thought, expression, belief, faith and worship through Fundamental Rights, which are enforceable in the Court of Law. (Art.19). **Indian Constitution embodies the concept of Positive liberty.** For liberty to be enjoyed by everyone there should be reasonable restraints. The freedom of many requires restraint of law on freedom of some, hence it is said that "If there are no laws, there is no liberty". **Hence statement 2 is not correct.**
- The Preamble also mentions liberty of thought and expression. These freedoms have been guaranteed in the Constitution through the Fundamental Rights. Though freedom from want has not been guaranteed in the Fundamental Rights, certain directives to the State have been mentioned in the Directive Principles.

Q 94.D

- **Salient Features Of Amendment Procedure:** Our constitution vests constituent power upon the ordinary legislature of the Union, i.e. Parliament, and there is no separate body for amending the constitution as exists in some other countries.
- Introduction of Bill for the amendment of the Constitution can be introduced only in Parliament not, in State Legislature. **An amendment of the constitution may be initiated in either house of the parliament as per the procedure provided under Article 368 of the constitution.** To introduce a constitution amendment bill in the parliament, no prior permission from the President is required. Both houses of Parliament must pass it separately. **Hence statement 1 is not correct.**
- In the final state, a constitutional amendment bill is presented to the President for his assent which the president cannot refuse. This has been established by the 24th Amendment Act, 1971 in which the president's assent to the Constitution amendment bill was made obligatory. **It was not mandatory under the original constitution. But there is no time limit within which the President must give his assent as soon as possible. Hence statement 2 is not correct.**

Q 95.B

- India declared itself a Republic since the making of the constitution in 1949. It means government by the people and for the people. We have an elected president as head of our state. All the offices including that of the president will be open to all the citizens. **Hence statement 1 is correct.** The government has no unlimited power, it is limited by the constitution. **Hence statement 2 is not correct.**
- In a Republic, the head of the state is elected by the people directly or indirectly. In India, the President is the head of the state. The President of India is elected indirectly by the people; that means, through their representatives in the Parliament and the State Assemblies. Moreover, in a republic, political sovereignty is vested in the people rather than a monarch. **Hence statement 3 is correct.**

Q 96.B

- The Constituent Assembly was constituted in November 1946 under the scheme formulated by the Cabinet Mission Plan.
- **Important facts related to the Constituent Assembly:**
 - The elephant was adopted as the symbol (seal) of the Constituent Assembly.
 - **Sir B.N. Rau was appointed as the constitutional advisor (Legal advisor) to the Constituent Assembly. Hence option (b) is not correct.**
 - H.V.R. Iyengar was the Secretary to the Constituent Assembly.
 - S.N. Mukerjee was the chief draftsman of the constitution in the Constituent Assembly.
 - Prem Behari Narain Raizada was the calligrapher of the Indian Constitution. The original constitution was handwritten by him in a flowing italic style.
 - The original version was beautified and decorated by artists from Shantiniketan including Nand Lal Bose and Beohar Rammanohar Sinha. Beohar Rammanohar Sinha illuminated, beautified and ornamented the original Preamble calligraphed by Prem Behari Narain Raizada.
 - The calligraphy of the Hindi version of the original constitution was done by Vasant Krishan Vaidya and elegantly decorated and illuminated by Nand Lal Bose.

Q 97.B

Collegium system

- It is a system under which appointments and transfers of judges are decided by a forum of the Chief Justice of India and the four senior-most judges of the Supreme Court. It has no place in the Indian Constitution. **Hence statement 1 is not correct.**
- Article 124 deals with the appointment of Supreme Court judges. It says the appointment should be made by the President after consultation with such judges of the High Courts and the Supreme Court as the President may deem necessary. The CJI is to be consulted in all appointments, except his or her own.
- **Article 217 deals with the appointment of High Court judges. It says a judge should be appointed by the President after consultation with the CJI and the Governor of the state. The Chief Justice of the High Court concerned too should be consulted.**

Procedure:

- Third Judges Case (1998) expanded the Collegium to a five-member body, comprising the CJI and four of his senior-most colleagues.
- The President of India appoints the CJI and the other SC judges. As far as the CJI is concerned, the outgoing CJI recommends his successor. In practice, it has been strictly by seniority ever since the supersession controversy of the 1970s. The Union Law Minister forwards the recommendation to the Prime Minister who, in turn, advises the President.
- **For other judges, the proposal is initiated by the CJI. The CJI consults the rest of the Collegium members, as well as the senior-most judge of the court hailing from the High Court to which the recommended person belongs.**
- High Court judges are recommended by a Collegium comprising the CJI and two senior-most judges. The proposal, however, is initiated by the Chief Justice of the High Court concerned in consultation with two senior-most colleagues. **Hence statement 2 is correct.**
- The recommendation is sent to the Chief Minister, who advises the Governor to send the proposal to the Union Law Minister.

Q 98.C

- At present, the Supreme Court consists of thirty-four judges (one chief justice and thirty three other judges).
- In 2019, the center notified an increase in the number of Supreme Court judges from thirty-one to thirty-four, including the Chief Justice of India. This followed the enactment of the Supreme Court (Number of Judges) Amendment Act, 2019.

- **Originally, the strength of the Supreme Court was fixed at eight (one chief justice and seven other judges). Hence option (d) is correct.**
- The Parliament has increased this number of other judges progressively to ten in 1956, to thirteen in 1960, to seventeen in 1977, to twenty-five in 1986, to thirty in 2008 and to thirty-three in 2019.
- **The Supreme Court (Number of Judges) Amendment Bill, 2019 was introduced in Lok Sabha on August 5, 2019 by the Minister of Law and Justice, Mr. Ravi Shankar Prasad. The Bill amends the Supreme Court (Number of Judges) Act, 1956.**
- The Act fixes the maximum number of judges in the Supreme Court at 30 judges (excluding the Chief Justice of India). The Bill increases this number from 30 to 33.
- Articles 124(2) and 217 of the Constitution governs the appointment of judges to the Supreme Court and High Courts respectively. Under both provisions, the President has the power to make the appointments “after consultation with such of the Judges of the Supreme Court and of the High Courts in the States as the President may deem necessary”.
- Over the years, the word “consultation” has been at the centre of debate on the executive’s power to appoint judges. In practice, the executive held this power since Independence, and a convention of seniority was evolved for appointing the Chief Justice of India.
- Parliament, which has the power to increase the number of judges, has gradually done so by amending the Supreme Court (Number of Judges) Act — from 8 in 1950 to 11 in 1956, 14 in 1960, 18 in 1978, 26 in 1986, 31 in 2009, and 34 in 2019.
- **As per the Article 124(1) of the Constitution of India, the strength of the Supreme Court is fixed by the law made by the Parliament. Hence option (a) is correct.**
- Article 124(2) states that every judge of the Supreme Court shall be appointed by the President by warrant under his hand and seal after consultation with such number of the judges of Supreme Court and of the High Courts (in states).
- The Parliament is competent to increase the number of judges if it deems necessary.
- Though there has been no criteria for fixing the judge strength of the Supreme Court, in view of the number of cases pending disposal, an increase in the judge strength was considered by Government. **Hence option (b) is correct.**
- **THE SUPREME COURT (NUMBER OF JUDGES) AMENDMENT ACT, 2019**
 - An Act further to **amend the Supreme Court (Number of Judges) Act, 1956**. BE it enacted by Parliament in the Seventieth Year of the Republic of India as follows:—
 - This Act may be called the Supreme Court (Number of Judges) Amendment Act, 2019.
 - In section 2 of the Supreme Court (Number of Judges) Act, 1956, for the word “thirty”, the word “thirty-three” shall be substituted. **Hence option (c) is not correct.**

Q 99.B

- **Uttar Pradesh: It was created in the year 1937** by the British regime under the name of United Provinces and post-independence it was renamed Uttar Pradesh in 1950.
- **Andhra Pradesh: on October 1, 1953**, Andhra state, which included the Telugu-speaking districts of the former Madras state to the south. That action paved the way for the formation of linguistic states throughout India, beginning in 1956 and continuing into the 21st century. Through the States Reorganization Act of 1956, the state of Hyderabad was split up, and its Telugu-speaking districts (constituting Telangana) were joined to the Andhra state on November 1, 1956, to form the new state of Andhra Pradesh.
- **Haryana: It was formed on November 1, 1966**, when the previous state of Punjab was divided into two independent states: Punjab, for Punjabi-speaking people, and Haryana, for Hindi-speaking people.
- **Nagaland was formally recognised as a separate state on 1st December 1963**, with Kohima being declared as its capital. The State of Nagaland Act, 1962, was enacted by the Parliament to give Nagaland statehood. After India became independent in 1947, the Naga territory initially remained a part of Assam. However, a strong nationalist movement began seeking a political union of the Naga tribes, and extremists demanded outright secession from the Indian union. In 1957, the Naga Hills region of Assam and the Tuensang frontier division to the northeast were brought together under a single unit directly administered by the Indian government. In 1960 it was resolved that Nagaland should become a constituent state of the Indian union. Nagaland achieved statehood in 1963, and a democratically elected government took office in 1964.

Q 100.B

- **Removal of Judges:** A judge may be removed from office through a motion adopted by Parliament on grounds of 'proven misbehaviour or incapacity'. While the Constitution does not use the word 'impeachment', it is colloquially used to refer to the proceedings under Article 124 (for the removal of a Supreme Court judge) and Article 218 (for the removal of a High Court judge).
 - A judge of the Supreme Court can be removed from his Office by an order of the president.
 - The President can issue the removal order only after an address by Parliament has been presented to him in the same session for such removal.
 - The removal address must be supported by a special majority of each House of Parliament (ie, a majority of the total membership of that House and a majority of not less than two-thirds of the members of that House present and voting). The grounds of removal are two-proved misbehaviour or incapacity. **Hence statement 3 is not correct.**
- **The Judges Enquiry Act (1968) regulates the procedure relating to the removal of a judge of the Supreme Court by the process of impeachment:**
 - A removal motion signed by 100 members (in the case of Lok Sabha) or 50 members (in the case of Rajya Sabha) is to be given to the Speaker/ Chairman.
 - The Speaker/Chairman may admit the motion or refuse to admit it. **Hence statement 1 is correct.**
 - If it is admitted, then the Speaker/ Chairman is to constitute a three-member committee to investigate into the charges. **Hence statement 2 is not correct.**
 - The committee should consist of (a) the chief justice or a judge of the Supreme Court, (b) a chief justice of a high court, and (c) a distinguished jurist.
 - If the committee finds the judge to be guilty of misbehaviour or suffering from an incapacity, the House can take up the consideration of the motion.
 - After the motion is passed by each House of Parliament by special majority, an address is presented to the president for removal of the judge.
 - Finally, the president passes an order removing the judge.
- **It is interesting to know that no judge of the Supreme Court has been impeached so far.** The first case of impeachment is that of Justice V. Ramaswami of the Supreme Court (1991–1993). Though the enquiry Committee found him guilty of misbehaviour, he could not be removed as the impeachment motion was defeated in the Lok Sabha. The Congress Party abstained from voting